

THE CRIMINAL RULES OF PRACTICE, KERALA, 1982

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PREAMBLE

In exercise of the powers conferred by Article 227 of the Constitution of India, Section 477 of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974) and of all other powers hereunto enabling and with the previous approval of the Governor of Kerala, the High Court of Kerala hereby makes the following rules for the guidance of all Criminal Courts in the State.

CHAPTER I PRELIMINARY

Rule - 1. Short title and commencement.

- (1) These rules may be called the Criminal Rules of Practice, Kerala, 1982.
- (2) They shall come into force on such date as the High Court may, by notification in the Gazette, appoint. [2]

Rule - 2. Repeal.

- (1) The Criminal Rules of Practice and Circular Orders, 1958, issued by the High Court of Madras and the Criminal Rules of Practice, Travancore-Cochin shall stand repealed.
- (2) All circulars and instructions issued before the commencement of these rules, shall, to the extent to which they are inconsistent with these rules, stand superseded by these rules.

Rule - 3. Definitions.

- (1) In these rules, unless the context otherwise requires,
 - (a) "Government" means the Government of Kerala;
 - (b) "Code" means the Code of Criminal Procedure, 1973 (Central Act 2 of 1974);
 - (c) "Collector" means District Collector and District Magistrate;
 - (d) "High Court" means the High Court of Kerala;
 - (e) Words and expressions used in these rules shall have the same meaning as assigned to them in the Code.

Rule - 4. Office Hours.

The offices of the Courts shall be open on all working days from 10.30 a.m. to 5.00 p.m. or during such other hours as may be notified by the High Court from time to time.

Rule - 5. Hours of Sitting.

- (1) The Courts shall ordinarily sit from 11.00 a.m. to 5.00 p.m. with an interval not exceeding one

hour.

(2) No case shall be heard and no judicial act shall be formally announced or done on a holiday save in case of absolute urgency.

(3) Nothing in sub-rule (2) shall affect the jurisdiction of a Magistrate to authorise detention of an accused person under sub-section (2) of Section 167 of the Code or to deal with a lunatic in accordance with the provisions of the Indian Lunacy Act, 1912 (Act 4 of 1912) or to record a dying declaration when required to do so by a competent authority or to release an accused from custody.

Rule - 6. Forms to be used.

The Forms prescribed by these rules shall be used for the respective purposes therein mentioned, with such variations as the particular circumstances of each case may require.

CHAPTER II SUMMONS

Rule - 7. Signing of summons.

- (1) Summonses issued to accused and witnesses shall ordinarily be signed by the Chief Ministerial Officer of the Court.
- (2) The words "By order of the Court" shall invariably be prefixed to the signature of the ministerial officer in such cases.

Rule - 8. Summons to medical witnesses.

- (1) Summonses to medical witnesses specified in column (1) of the Table below, shall be served through the persons specified in column (2) thereof.

TABLE

(1)	(2)
(a) Medical Officers in Government Medical institutions	District Medical Officer to whom he is subordinate.
(b) Medical Officers serving in Municipalities, Local Boards and other local authorities and institutions	Chief Executive Officer of such institutions.
(c) Honorary Medical Officers working in Government Medical Institutions	Officer-in-charge of such institutions.
(d) Medical Officers working in the Government and other Medical Colleges of the State	In respect of postmortem cases-Professor of Forensic Medicine of the Medical College concerned. In all other cases-Concerned Superintendent of the Medical College Hospital.
(e) Private Medical Practitioners	Directly by serving the summonses on them.

- (2) In the case of Medical Officers coming under clauses (a) to (d) of sub-rule (1) if their absence from station is not involved, the summons may be served on them direct and the fact intimated to the persons through whom the summons is usually to be served, for

information.

(3) In cases where the time available is short, the witness may be summoned by telegram.

(4) When District Medical Officers are cited as witnesses the summons shall be sent to them directly.

Rule - 9. Summons to official witnesses whose correct address is not known.

(1) The Court may issue summons to official witnesses through Heads of Departments in cases where their present address is not definitely known.

(2) The Court shall, in such cases, issue a duplicate copy of the summons direct to the witness either through post or through the police in the address shown in the charge sheet or complaint.

Rule - 10. Summons to Police Officers.

(1) Summons to Police Officers shall be issued through their superior officers.

(2) The Court may, while issuing summons to Police Officers, issue direct to the witness by post a notice intimating him of the date for his appearance and stating that the summons to him is being sent through proper channel. In fixing the date for appearance, the Court shall allow sufficient time.

Rule - 11. Summons to Director of Forensic Science Laboratory.

Summons issued to the Director of Forensic Science Laboratory shall contain full particulars such as crime number, the name of the police station and the office file number of the Laboratory.

Rule - 12. Special Provisions relating to Medical Witnesses.

(1) Orders of the Presiding Officers of Courts shall be taken before a summons is issued to a Medical Officer and a convenient date shall be fixed for his examination.

(2) If there are more medical officers than one in a hospital, only one officer should, as far as possible, be summoned at a time.

(3) If possible, it may be previously ascertained from the Medical Officer what time would best fit in with his professional duties. A medical witness shall be summoned only when the presence of the accused is certain and when there is no likelihood of the case being adjourned for any other reason. The Presiding Officer of the Court shall see that the time fixed for the examination of the Medical Officer is adhered to and that the absence of the Medical Officer from his duties is as brief as possible.

- (4) Wherever possible, the particulars of the injured person, the date on which he appeared at the hospital and the number of the postmortem or wound certificate shall be shown in the summons to medical witnesses.

Rule - 13. Form of Summons.

Summons for the appearance as witness of the Presiding Officer of a House of Parliament or of a State Legislature or the Chairman of a Committee thereto or of any other person who is, in the opinion of the Court, entitled to such mark of consideration, shall be in Judicial Form No. 2.

Rule - 14. Translation of Process.

When process is issued in a language other than the official language of the receiving Court, such process shall be accompanied by an authorised English translation thereof. The report from the receiving Court to the Court which issued the process regarding the service or non-service of the process shall be accompanied by an authorised English translation of the report, if the report is not in English or in the language of the Court which issued the summons.

CHAPTER III ABSCONDING ACCUSED

Rule - 15. Cases in which accused has absconded.

(1) When process has been issued for the attendance of the accused but the case has remained pending for a long time, owing to his non-appearance and the Magistrate is satisfied that the presence of the accused cannot be secured within a reasonable time, or when an accused person found to be of unsound mind is released under sub-section (1) of Section 330 or is detained in safe custody under sub-section (2) of Section 330 of the Code, the Magistrate shall report the case for the orders of the Chief Judicial Magistrate and the Chief Judicial Magistrate may, if he thinks fit, order that the case be removed from the register of cases and omitted from the returns. The case shall, however, then be entered in a separate register of long pending cases which shall be maintained by all Magistrates in Administrative Form No. 9.

(2) If subsequently the accused person is apprehended or appears or ceases to be insane, as the case may be, the case against him shall be treated as a new case, entered accordingly in the register of cases received and dealt with according to law.

(3) In case of withdrawal of prosecution or complaint, as the case may be, the case may be given a new number and the accused acquitted or discharged in the new number. In the case of death of the accused, the case shall be treated as closed.

Rule - 16. Cases in which some of the accused have absconded.

(1) Where there are several accused persons and only some of them have appeared or been produced before the Court, if the Magistrate is satisfied that the presence of the other accused cannot be secured within a reasonable time, having due regard to the right of such of the accused as have appeared to have the case against them enquired into without delay, he shall proceed with the case as against such of the accused as have appeared and dispose of it according to law. As regards the accused who have not appeared, he shall give the case a new number and enter it in the register of cases received, and if it remains pending for a long time and efforts to secure the presence of the accused have failed and the case against the accused who have appeared has been disposed of, the

Magistrate shall report the whole matter as regards all the accused to the Chief Judicial Magistrate and the Chief Judicial Magistrate may direct that the case against the absent accused be removed to the register of long pending cases, or, if the Chief Judicial Magistrate is of opinion that the case against the absent accused is wholly false, he may direct that the case be omitted from the register and the returns altogether:

Provided that the Chief Judicial Magistrate may at any subsequent time order the case to be entered in the register of long pending cases.

(2) If subsequently any of the absent accused is produced or appeared before the Court or the accused who was insane ceased to be insane, the case against him shall be registered under a new number.

Rule - 17. Procedure to be observed before transfer of a case to the "Register of long pending cases".

Before directing the transfer of a case other than a case dealt with under sub-sections (1) and (2) of Section 330 of the Code to the register of long pending cases, the Chief Judicial Magistrate shall satisfy himself that all reasonable steps have been taken to follow the procedure under Sections 82 and 83 of the Code and also when practicable, that all provisions of Section 299 of the Code have been complied with.

Rule - 18. Cases where an accused has absconded after appearance.

Rules 16 to 18 shall apply, as far as may be, to cases where an accused has appeared but has subsequently absconded.

Rule - 18A. [Cases where the accused has absconded or become insane after committal to the Sessions Court.

Rules 16 to 18 shall apply to all sessions cases, as far as may be, where an accused person has absconded or has become insane after the case is committed to the Sessions Court. The Sessions Court shall include such cases in the Register for long pending cases and shall report the matter to the High Court.]^[3]

CHAPTER IV PRESENTATION OF PLEADINGS, REPORTS, DOCUMENTS AND REMANDS

Rule - 19. Copies of police reports etc. to be produced.

(1) The officer-in-charge of the Police Station forwarding the final report of any investigation under sub-section (2) of Section 173 of the Code, shall file in Court along with such report as many copies of such report and also of the other documents mentioned in clauses (ii), (iii) and (v) of Section 207 of the Code as there are accused in the case. Such copies shall be verified and certified to be true copies of the respective originals by the officer-in-charge of the police station.

(2) The Court shall return such report in case it is not accompanied by such copies or the copies produced are not verified and certified as aforesaid.

(3) Nothing contained in these rules shall however preclude the police officer from making any request to the Court under sub-section (6) of Section 173 of the Code to exclude any part of any statement recorded under Section 161 of the Code from the copies to be granted to the accused or the Court

from excluding such part from such copies.

Rule - 20. Remand to police custody.

(1) Magistrates shall not grant remands to police custody unless they are satisfied that there is good ground for doing so and shall not accept a general statement made by the investigating or other police officer to the effect that the accused may be able to give further information. A request for remand to police custody shall be accompanied by an affidavit setting out briefly the prior history of the investigation and the likelihood of further clues which the police expect to derive by having the accused in custody, sworn to by the investigating or other police officer, not below the rank of a Sub-Inspector of Police. Magistrates shall personally see and satisfy themselves about the accused being sound in mind and body before entrusting him to police custody and also at the end of the period of custody by questioning him whether he had in any way been interfered with during the period of custody. Where the object of a remand is verification of the statement of an accused, he shall, whenever possible, be remanded to the charge of a Magistrate and the period of remand shall be as short as possible.

(2) It is the duty of Magistrates who remand accused persons to custody other than that of police, and of Magistrates in executive charge of sub-jails to which accused persons are remanded, to guard with the greatest care against the possibility of any undue influence.

Rule - 21. Remand of an accused person detained in a hospital.

Where an accused detained in a hospital is not in a position to be moved and produced before the Magistrate concerned, the Magistrate shall proceed to the hospital, see the accused person and shall order remand or an extension of the remand as the case may be.

Rule - 22. Counting the period of remand.

In computing the period of 15 days mentioned in sub-section (2) of Section 167 of the Code or the proviso to Section 309 of the Code, both the day on which the remand order is made and the day on which the accused is ordered to be produced before the Court shall be included. In computing the period of 60 days mentioned in the proviso to sub-section (2) of Section 167 of the Code, both the day on which the remand was made and the day on which the accused is ordered to be produced shall be included.

Rule - 23. Report on remand to custody to be made to the High Court.

When an accused is brought before a Subordinate Court under Section 390 of the Code, the Court shall fully explain to him the procedure of the High Court with regard to the posting and hearing of appeals embodied in the rules of the High Court. If the accused is remanded to custody, the Court shall forthwith report the action taken to the High Court and if the warrant issued by the High Court is a bailable warrant, the Court shall state its reasons for the remand.

Rule - 24. Complainant to produce copies of complaint.

(1) Every complainant filing a written complaint in Court shall file along with the complaint as many copies on plain paper, of the complaint as there are accused. Such copies shall be verified and certified to be true copies of the original, by the complainant or by his Pleader or Advocate, in cases where he is represented by such Pleader or Advocate.

(2) The Court shall return such complaint, in case it is not accompanied by such copies or the copies produced are not verified and certified as aforesaid.

Rule - 25. Court may dispense with copies.

Nothing contained in these rules shall preclude the Court from directing that instead of being given a copy, the accused shall be only allowed to inspect any document either personally or through Pleader in Court in cases governed by the second proviso to Section 207 of the Code.

Rule - 26. Complaints against Police Officers not to be referred to the Police.

A complaint against a Police officer shall not be referred to by a Magistrate under Section 202 of the Code to any person other than a Magistrate subordinate to him.

Rule - 27. Presentation and form of proceedings, petitions, documents and docketing, etc.

(1) All petitions, applications, affidavits, memoranda of appeal, revision petitions and other proceedings presented to a Court shall be in English or in the language of the Court and shall be written legibly in ink or typewritten or printed legibly on transparent foolscap folio paper with an outer margin of about 4 cms. and an inner margin of about 1.5 cms. Separate sheets shall be stitched together book-wise. Numbers shall be expressed in figures. Except in the case of main proceedings, the writing or typewriting or printing may be on both sides of the paper; provided however that the last sheet shall in all cases be written, typewritten or printed on the inner page only.

(2) All proceedings and other documents filed in Court shall be docketed on the reverse of the final page endorsing the name of the Court, the number and year of the proceedings to which it relates, the name of the person presenting the same and the date of presentation in Court.

Rule - 28. Date stamping of papers and initialling of FIR by Magistrates.

(1) All papers presented in Court shall be sealed with the date stamp of the Court immediately they are received.

(2) Whenever a First Information Report is received in Court, the Magistrate shall initial it noting the date and time of the receipt thereof.

Rule - 29. Cancellation of stamps.

(1) The Presiding Officer or the Chief Ministerial Officer of the Court, shall, on receiving any document which is stamped, cancel the same with his initials and date and shall also note on the top of the document the total value of the stamp the document bears.

(2) All court fee stamps whether impressed or in the form of labels in every document received by the Court shall be cancelled by punching out the insignia of the State in the stamps in such a manner as to leave the amount designated on the stamp untouched.

CHAPTER V APPOINTMENT OF PLEADERS

Rule - 30. Private Pleadings.

(1) No person who is not a qualified legal practitioner shall be permitted to act as a pleader in any

proceeding except to prevent a possible miscarriage of justice and for reasons to be recorded in writing by the Court. Such permission shall be restricted to the conduct of the particular case and shall not operate as a general licence empowering the person so permitted to act as a pleader in all cases.

(2) Any person permitted under sub-rule (1) to act as a pleader shall file in Court a duly stamped power of attorney from his client authorising him to act as such.

Rule - 31. [Pleader to file Memo of Appearance.]

Every Pleader as defined in clause (q) of Section 2 of the Code of Criminal Procedure, 1973, other than a Public Prosecutor, appearing either on behalf of the complainant or the accused, shall file a memorandum of appearance containing the following particulars:

- (i) A declaration that he is duly instructed by or on behalf of the party whom he claims to represent;
- (ii) Number and year of proceedings;
- (iii) Name of the parties to the proceedings;
- (iv) Name and position in the proceeding of the party for whom he appears;
- (v) Roll Number;
- (vi) Address of the Advocate.]^[4]

Rule - 32. Form and attestation of vakkalath.

(1) Every vakkalath shall, unless otherwise permitted by the Court, be in Judicial Form No. 57. The name of the pleader or, if more than one pleader is appointed, the names of the pleaders shall be inserted in the vakkalath before it is executed. It shall be dated at the time of its execution and of its acceptance. Its execution shall be attested by a Judicial Officer, a District Registrar, or a Sub-Registrar, the Chief Ministerial Officer of Civil or Criminal Court in the State of Kerala, a Member of Parliament or of the Legislature of any State in India, the Chairman, Executive Authority or Member of any Municipal Council or Corporation or other local authority in India, a Village Officer, a Gazetted Officer, in the service of the Central Government or of any State of India, a Commissioned Officer in the Defence Forces of India or an Ambassador or Envoy duly accredited by or to the Central Government, or a pleader other than the pleader accepting the vakkalath:

Provided that the pleader accepting the vakkalath may attest the vakkalath where the executant is personally known to him and an endorsement to that effect is made by the Pleader.

(2) The authority attesting the vakkalath under sub-rule (1) shall certify that it has been duly executed in his presence and subscribe his signature over his name and designation. No vakkalath shall be attested unless the Pleader's name is inserted therein previous to its execution. When a vakkalath is executed by a party who appears to the person before whom it is executed to be illiterate, blind or unacquainted with the language in which the vakkalath is written the person shall certify that the vakkalath was read, translated and explained in his presence to the executant, that he seemed to understand it and that he made his signature or thumb mark in his presence.

(3) The execution of a vakkalath by a person in custody may be authenticated by the Jailor, Station

House Officer or other officer-in-charge.

(4) When the executant of a vakkalath is himself a public officer, of whose signature a Court may take judicial notice, authentication of the vakkalath is not necessary.

(5) Every vakkalath shall contain an endorsement of the pleader in whose favour it is executed that it has been accepted by him. There shall also be endorsed on the vakkalath a statement of his address for service. If more Pleaders than one are named in the vakkalath, it shall be accepted by all such Pleaders but the address for service may be of any one of them.

Rule - 33. Pleaders to file special vakkalath appearing for accused exempted from personal appearance.

Every pleader appearing on behalf of an accused who has been exempted from personal appearance shall file a vakkalath as prescribed by Rule 32.

Rule - 34. Change of pleader.

A pleader proposing to enter appearance in a proceeding for a party, for whom there is already a pleader on record, shall produce the written consent of such Pleader, or where such Pleader, refuses his consent he shall obtain the special permission of the Court.

Rule - 35. Pleader not to take delivery of property in the absence of a special authorisation in the vakkalath.

No pleader shall be entitled to take delivery of property or receive money or documents on behalf of his client unless specially authorised to do so by the vakkalath or the power of attorney.

Rule - 36. Appointment of a pleader to continue for getting copies of judgment etc.

Notwithstanding the termination of all proceedings in the trial or enquiry, the appointment of a pleader in a criminal case shall, unless otherwise provided for therein or determined by the death of the party engaging him or of the pleader or by revocation in due course, be deemed to authorise him to appear or to take an application or to do any act in connection with getting copies of judgments and other documents.

CHAPTER VI AFFIDAVITS

Rule - 37. Form of affidavit.

Every affidavit shall be drawn up in the first person and be divided into paragraphs numbered consecutively; and each paragraph as nearly as may be shall be confined to a distinct portion of the subject matter.

Rule - 38. Contents of affidavit.

Every affidavit shall state the full name, age, description and place of abode of the deponent and shall be signed or marked by him. Where the affidavit covers more than one page, the deponent shall sign every page. The description shall include the father's or karanavan's or husband's or mother's name and such other particulars as may be necessary to identify the person.

Rule - 39. Alterations, erasures, etc.

Alterations, erasures and interlineation shall, before an affidavit is sworn or affirmed, be authenticated by the person before whom the affidavit is signed. No affidavit having therein any alteration, erasure or interlineation not so authenticated shall, except with the leave of the Court, be filed or made use of in any manner.

Rule - 40. Persons authenticating affidavit and mode of authentication.

(1) Affidavits may be sworn or affirmed before any judicial officer, a District Registrar or Sub-Registrar, the Chief Ministerial Officer of any civil or Criminal Court in the State of Kerala, a Member of Parliament, or of the Legislature of any State in India, the Mayor, Chairman, President, Executive Authority or a Member of any Municipal Corporation, Municipal Council or other local authority in India, a gazetted officer serving in connection with the affairs of the Union or of any State in India, a Commissioned Officer in the Defence Forces of India, or an advocate.

(2) The person before whom the affidavit is sworn or affirmed shall state the date on which and the place where the same is made and sign under his name and designation at the end, as in Judicial Form No. 58.

Rule - 41. Blind or illiterate deponent.

Where an affidavit is sworn or affirmed by any person who appears to the person authenticating the affidavit to be illiterate, blind or unacquainted with the language in which the affidavit is written, the person authenticating shall certify that the affidavit was read, explained and translated by him or in his presence to the deponent, that the deponent seemed to understand it and made his signature or mark in the presence of the person authenticating it.

Rule - 42. Identification of deponent.

(1) If the deponent of an affidavit is not known to the person authenticating the same, the identity of the deponent shall be caused to be testified by any person known to him who shall attest the signature or mark of the deponent in token thereof.

(2) Where the deponent is a pardanashin lady, she shall be identified by a person to whom she is known and that person shall verify the identification by a separate affidavit.

Rule - 43. Documents referred to in affidavits.

Documents mentioned in and accompanying an affidavit shall be referred to as exhibits and shall be marked in the same manner as exhibits admitted by the Court and shall bear a certificate as in Judicial Form No. 59 signed by the Officer before whom the affidavit is taken.

Rule - 44. Affidavit stating opinion.

Every affidavit stating any matter of opinion shall show the qualification of the deponent to express such opinion, by reference to the length of experience, acquaintance with the person or matter as to which the opinion is expressed or other means of knowledge of the deponent.

Rule - 45. Affidavit on information or belief.

Every affidavit shall clearly express how much is a statement of the deponent's knowledge and how much is a statement of his belief. The grounds of belief must be stated with sufficient particularity to enable the Court to judge whether it would be safe to act upon the deponent's belief.

Rule - 46. Filing of affidavits in Courts.

Except with the leave of the Court, no affidavit which has not been filed in Court and of which a copy has not been given to the opposite side at least three days before the hearing shall be used in any matter.

Rule - 47. Cross-examination of deponent.

The Court may at any time direct that any person shall attend to be cross-examined on his affidavit.

Rule - 48. Counter affidavits.

The parties to whom copies of affidavits have been given shall be entitled to file counter affidavits, copies of which shall be given to the opposite parties, who may, if they choose, file further affidavits in reply; but except with the leave of the Court, no further affidavits shall be filed.

CHAPTER VII EXAMINATION OF WITNESSES**Oath and Affirmations****Rule - 49. Swearing in of witnesses.**

Subject to the provisions of the Oaths Act, 1969 (Central Act 44 of 1969), every witness and every interpreter shall take an oath or make an affirmation before he is examined or called upon to interpret.

Rule - 50. Officer administering oath.

The oath to witnesses and interpreters shall be administered in open Court by the Presiding Officer or by such other person empowered by him in this behalf or where the witness is examined on commission by the Commissioner.

Rule - 51. Form of oath.

(1) The following shall be the form of oath to be administered to the witness:

"I do swear in the name of God that what I shall state shall be the truth, the whole truth and nothing but truth".

(2) Witnesses who object to make an oath may solemnly affirm in the following form:

"I do solemnly affirm that what I shall state shall be the truth, the whole truth and nothing but truth".

Rule - 52. Oath to interpreter.

When a witness is examined with the aid of an interpreter, the interpreter also shall be administered an oath or affirmation in the following form:

"I do swear in the name of God/ solemnly affirm	that
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I will well and truly interpret and explain all questions put to and evidence given by witnesses"

Rule - 53. Translation of oath.

When the witness cannot understand the language in which the oath or affirmation is administered, the oath or affirmation shall be translated by the interpreter and put to the witness and the witness allowed to take the oath or affirmation in the language known to him.

Rule - 54. Police Officers not to interpret evidence.

Police Officers shall not be employed to interpret the evidence of witnesses in cases prosecuted by the police.

Rule - 55. Witnesses under disability.

Where the witness appears to be under a disability, the Court may hold a preliminary enquiry as to his competency to give evidence.

Rule - 56. Heading of depositions.

In the heading of the deposition of witnesses, the full name, including the family name of the deponent, if any, and his or her father's or mother's or husband's name shall be recorded. The heading shall also state the age, profession and residence of the witness. The name of the interpreter, if any, shall be written below the particulars stated above.

Rule - 57. Signing of depositions.

After a deposition has been read over to the witness, the last page thereof shall be signed in full by him. The Judge shall initial every page if the deposition is not recorded in his hand. A certificate in the following form shall be appended at the foot of the deposition and the Judge shall affix his signature thereto over his name:

'Taken down by me/before me in open Court, interpreted/read over to the witness and admitted by him to be correct".

Rule - 58. Dispensing with or refusing examination of witness present.

(1) If a party dispenses with the examination of any witness, the party or his pleader shall ordinarily be required to sign a memorandum to that effect.

(2) If the Court refuses to examine any witness, the reason for such refusal shall be recorded.

Rule - 59. Examination in camera.

The Court may, having regard to the special circumstances of any particular case, order the examination of any witness in camera.

Rule - 60. Evidence as to the age of the accused.

In every case in which the precise age of an accused person is relevant, evidence shall be taken on the question and whenever necessary, the opinion of a medical expert shall be obtained.

Rule - 61. Charges for interpretation.

Sessions Judges and Chief Judicial Magistrates and District Magistrates may sanction reasonable expenditure on account of interpretation of questions put to the accused, the answers given by him, the statement of pleas of the accused and the evidence given by witnesses. The Chief Judicial Magistrates may also sanction such expenditure for interpretation in the Courts subordinate to them. Expenditure for interpretation shall be incurred only if there are no members on the staff of the Court concerned, who are competent to act as interpreters.

Rule - 62. Marking of exhibits.

(1) Exhibits admitted in evidence shall be marked as follows:

(i) If filed by the prosecution, with capital letter P followed by a numeral P1, P2, P3 etc.

(ii) If filed by the defence, with capital letter D followed by a numeral D1, D2, D3 etc.

(iii) If Court exhibits, with capital letter C followed by a numeral C1, C2, C3 etc.

(2) All exhibits marked by several accused shall be marked consecutively.

(3) All material objects shall be marked in Arabic numbers in continuous series, whether exhibited for the prosecution or the defence or the Court as M.O. 1, M.O. 2, M.O. 3, etc.

Rule - 63. Production of case properties and payment of transport charges in certain cases.

Where any property including livestock is entrusted to a party for being produced before Court at the time of the bearing and is accordingly produced, the Court may order the payment of reasonable charges incurred for their production.

CHAPTER VIII THE CHARGE**Rule - 64. Charges of previous conviction to be set out separately.**

If it is proposed to prove several previous convictions against an accused person for the purpose of effecting his punishment under Section 236 and sub-section (3) of Section 248 of the Code, they shall be set-forth separately, each under a distinct head of charge.

Rule - 65. Complainant how to be described in the charge.

The person against whom an offence is alleged to have been committed shall be described in the charge by his name and not by his position in the case as prosecutor or witness.

CHAPTER IX APPLICATIONS

Rule - 66. Applications under Section 340 of the Code.

Every application under Section 340 of the Code shall be registered as a Criminal Miscellaneous Petition.

Rule - 67. Miscellaneous Cases.

Every original petition shall be registered as a miscellaneous case and shall be headed with a cause title setting out the provision of law under which it is filed and the names and full addresses of the parties to it separately numbered and described as petitioners or respondents.

Rule - 68. Return of defective petitions and their representation.

Every petition, application, complaint, police report or other proceeding which does not comply with the requirements of Rule 67 or is otherwise defective shall not be numbered and shall be returned to the party of the pleader or the officer concerned for amendment and representation within a specified time.

Rule - 69. Application for transfer of a case or for other relief to be filed as Criminal Miscellaneous Petition.

Every application for transfer of a case and every application not otherwise provided for in these rules shall be registered as a Criminal Miscellaneous Petition.

CHAPTER X RECORDING OF CONFESSIONS**Rule - 70. Mode of recording confessions.**

(1) No Magistrate shall record any statement or confession made by an accused person under Section 164 of the Code until the Magistrate has first recorded in writing his reasons for believing that the accused is prepared to make the statement voluntarily and until he has explained to the accused that he is under no obligation to answer any question at all and has warned the accused that it is not intended to make him an approver and that anything he says may be used against him.

(2) Before recording a statement, the Magistrate shall question the accused in order to ascertain the exact circumstances in which his confession is made and the extent to which the police have had relations with the accused before the confession is made.

(3) The Magistrate may put to the accused the following questions and such other questions as deemed necessary:

- (a) When did the police first question you
- (b) How often were you questioned by the police
- (c) Were you detained anywhere by the police before you were taken formally into custody and, if so, in what circumstances
- (d) Were you urged by the police to make a confession
- (e) Have the statements you are going to make been induced by ill-treatment And, if so, by whom
- (f) Do you understand that the statement which you are about to make may be used against you at

your trial

The questions put to the accused and the answers thereto shall be recorded by the Magistrate before he records the accused's statement and shall be appended to the memorandum prescribed by sub-section (4) of Section 164 of the Code. The Magistrate shall add to the memorandum a statement in his own hand of the grounds on which he believes that the confession is voluntary and shall note the precautions which he took to remove the accused from the influence of the police and time given to the accused for reflection.

(4) If the Magistrate has any doubt whether the accused is going to speak voluntarily he may, if he thinks fit, remand him to a Sub-Jail before recording statement; and ordinarily the accused shall be withdrawn from the custody of the police for twenty-four hours before his statement is recorded. When it is not possible or expedient to allow so long a time, the Magistrate shall allow the accused at least a few hours for reflection.

(5) The statement of the accused shall not be recorded nor shall the warning prescribed in sub-rule (1) be given nor shall the questions suggested in sub-rule (3) be asked in the presence of a co-accused or of the police officers who have arrested him or who have produced him before the Magistrate or who have investigated the case.

(6) The Magistrate shall record the confession in open Court and during Court hours save for exceptional reasons. He shall record the confession in as much details as possible and the record of the confession shall contain the fullest particulars of the incidents involved.

Rule - 71. Requisition by police to be made to the Chief Judicial Magistrates.

[5] [(1)] Except in cases of urgency, e.g., when a dying declaration has to be recorded etc., requisitions signed by a police officer to record the statements of any person other than an accused person shall normally be made to the Chief Judicial Magistrate or the Judicial Magistrate of the first class or any Magistrate other than the Magistrate having territorial jurisdiction, whom the Chief Judicial Magistrate may nominate for the purpose.

[6] [(2)] The Magistrate who is recording a confession/statement under Section 164 of the Code of Criminal Procedure, 1973 (Central Act 2 of 1974) or a dying declaration, shall prepare such confession/statement/declaration in duplicate and retain one such confession/statement/declaration in his court, after duly entering the particulars of such confession/statement/declaration in Administrative Form No. 46.]

CHAPTER XI PRELIMINARY ENQUIRIES AND TRIALS

Rule - 72. Diary.

(1) Every Court shall maintain a diary in Administrative Form No. 10. The entries shall be signed by the Presiding Officer on the day to which they relate.

(2) Every Court shall maintain a hearing book in Administrative Form No. 11.

Rule - 73. Proceedings Paper.

(1) Every Judge or Magistrate shall maintain a proceedings paper on Judicial Form No. 61 furnishing

therein full information as to the several judicial steps taken in the case such as reasons for adjournments, issue of warrants to the accused or witnesses, marking of documents, examination of witnesses, framing of charges, questioning of the accused, hearing arguments and pronouncing judgment or order. The entries shall be neatly written by the Judge or Magistrate and initialed by him in open Court.

(2) When records are sent up to a Court of appeal or revision or forwarded to a Court to which the case is transferred or committed, a typed or neatly written copy of the proceedings paper shall be placed with the records.

Rule - 74. A statement of the case to be placed with committal records.

When committing an accused person to a Court of Session, the Magistrate shall place with the record a statement of the case in Administrative Form No. 44.

Rule - 75. Plan of the scene of offence.

In all cases triable by a Court of Session, the committing Magistrate may, if necessary, call upon the police or the complainant to prepare and file a plan or sketch of the scene of offence, if the same has not been filed along with the charge sheet or complaint.

Rule - 76. Committing Magistrate to dispose of cases triable by Sessions Court expeditiously.

(1) Magistrates shall with the least practicable delay commit to the Court of Session, cases triable by it after complying promptly with the provisions of Sections 207 and 208 of the Code, as the case may be.

(2) In every case in which the time taken between the receipt of the charge sheet and the date of the committal order exceeds three weeks, the committing Magistrate shall furnish an explanation for the delay which shall be attached to the copy of the committal order submitted to the Sessions Judge and the Chief Judicial Magistrate.

Rule - 77. List of property.

(1) When a case is committed to the Court of Session, a descriptive list of weapons or other articles of property connected with the case shall be placed among the records.

(2) The Sessions Judge shall, when making over a Sessions case to another Court, send a copy of his order to the committing Magistrate. If he decides to try the case himself, he shall intimate the date of posting to the committing Magistrate. The properties shall, however, be forwarded by the Court only after it is informed which Court is to try the case.

CHAPTER XII COURT OF SESSION

Rule - 78. Numbering of cases committed to Court of Session.

Cases committed to the Court of Session shall be filed and numbered immediately on the receipt of the intimation of committal. The cases shall continue to bear the same numbers even when they are transferred to trial to the Additional or Assistant Sessions Judges.

Rule - 79. Numbering of Cases transferred to the Chief Judicial Magistrates.

When a case is transferred by the Sessions Judge to the Chief Judicial Magistrate under clause (a) of sub-section (1) of Section 228 of the Code, the latter shall give the case a new number in the calendar of cases.

Rule - 80. Sessions work to be given preference.

Sessions work shall ordinarily be given preference over civil work.

Rule - [81.

[x x x x]^[7]

Rule - [82.

[x x x x]^[8]

Rule - 83. Facilities to be given to the defence pleader.

As soon as the charge is framed and read out to the accused, a copy of the charge shall be given to the defence pleader appointed by the Court under sub-section (1) of Section 304 of the Code. The Court shall give all necessary convenience to the defence pleader to peruse and if necessary take copies of all the relevant records of the case in order to enable him to effectively conduct the defence.

Rule - [84.

[x x x x]^[9]

Note.- The rules now framed under Section 304(2) of the Code of Criminal Procedure provides for matters dealt with in the above Rules. The amendment is intended to avoid duplication.

Rule - 85. Amicus Curiae.

The Court may, in its discretion, appoint a pleader as amicus curiae in any case of importance or difficulty.

Rule - 86. Prisoners to be released immediately on acquittal.

A prisoner shall be released from custody immediately on a judgment acquitting him is pronounced unless he is liable to be retained in custody in any other case.

Rule - 87. Copy of letter of reference in Referred Trials.

Copy of the Judge's letter of reference shall be supplied immediately to a prisoner sentenced to death.

Rule - 88. Order of the High Court and the Supreme Court to be communicated to the Superintendent of jails.

(1) Sessions Judges shall make arrangements for communicating every order of the High Court and of the Supreme Court imposing, confirming, reversing or commuting a sentence of death to the Superintendent of the jail where the prisoner is confined within 24 hours of the receipt of the order.

(2) In the case of an order of the High Court confirming or imposing a sentence of death, the warrant for executing that sentence shall not be issued by the Sessions Judge until after the dismissal of the appeal to the Supreme Court or of the application for special leave to appeal to the Supreme Court, or, in case no such appeal has been preferred or no such application has been lodged, until after the expiry of the period allowed for an appeal to the Supreme Court or for lodging of an application for special leave to appeal to the Supreme Court:

Provided that if a petition for mercy has been submitted to the Governor or the President by or on behalf of the convict, the warrant for execution of the sentence shall further be postponed pending orders on that petition.

(3) If the sentence of death has been passed on more than one person in the same case and if an appeal to the Supreme Court or an application for special leave to appeal to the Supreme Court is lodged by or on behalf of only one or more, but not all of them the warrant for execution of the sentence shall be postponed in the case of all such persons and not only in the case of the person or persons by whom or on whose behalf the appeal or the application is lodged.

Rule - 89. Issue of warrant of execution of sentence of death.

Subject to the provision of sub-rule (2) or Rule 88, the Sessions Judge shall, in the case of an order confirming or imposing a sentence of death received under sub- rule (1) of Rule 88 issue a warrant in Form No. 42 of the Second Schedule of the Code (Suitably amended with regard to cases in which a sentence of death is imposed in appeal) accompanied by a copy of the judgment in the appeal, and shall appoint therein as the date of execution a day not less than 21 days and not more than 28 days from the date of expiry of the period specified in sub-rule (2) of Rule 88.

Rule - 90. Levy of fine to be notified to the jail authorities by the Court of Session in cases of sentence of imprisonment for life and fine.

When a Court of Session imposes a fine in addition to imprisonment for life and the whole or part of the fine is paid or recovered, the Court shall endorse the fact of such payment or recovery on the warrant of commitment and, if that has already been issued, shall notify the fact of payment or recovery to the jail authorities concerned.

CHAPTER XIII RULES FOR PRINTING JUDGMENTS IN SESSIONS CASES

Rule - 91. Court of Session to print all its judgments.

(1) Courts of Session shall, as far as printed all its Sessions Judgments. A list of witnesses examined by the prosecution or by the defence or by the Court and exhibits and material objects shall be printed at the end. The cost of such printing shall be debited to the contingent grant of the Court.

Rule - 92. Distribution of copies of Sessions Judgments.

(1) Courts of Session shall, as far as possible, within two weeks from the date of pronouncing judgment in trial cases, print sufficient number of copies of the judgment and distribute them free of cost as follows:

(a) One copy to the District Collector.

- (b) One copy to the Chief Judicial Magistrate, who after perusal shall forward the same to the committing Magistrate for filing with the records.
 - (c) One copy to the Superintendent of Police.
 - (d) One copy to the High Court as provided for in the rules relating to the submission of judgments and calendars.
 - (e) Eight copies to the High Court with an additional eleven copies in the case of judgments awarding death penalty or imprisonment for life for being forwarded to the Supreme Court if required in connection with any special leave applications preferred to that Court. These shall be forwarded to the High Court along with the records of the case, when called for.
 - (f) One copy to each of the accused as provided in Section 363 of the Code.
 - (g) One copy (for each prisoner) to the Superintendent of the jail to which the prisoner is committed when such prisoner is sentenced to imprisonment, for being filed with the warrant of committal or used for purposes of memorialising the Government, if required.
 - (h) Two copies (for each prisoner) to the Superintendent of jail to which a prisoner is committed in cases where such prisoner is sentenced to death to prevent delay in the transmission of petitions for mercy.
 - (i) In cases other than those mentioned in clauses (g) and (h), one copy shall be furnished to such person convicted of an offence on his requisition in order to afford facilities for memorialising the Government to exercise its powers under Chapter XXXII, Part E of the Code in addition to the copy required by Section 363 of the Code.
 - (j) One copy each to the Chemical Examiner, the Director of State Forensic Science Laboratory, the Serologist, the Public Analyst and Chemical Examiner of the Government of India, Calcutta in cases in which reference has been made to them.
 - (k) One copy to the Head of Department or immediate superior in cases in which a Government servant has figured as an accused.
 - (l) One copy to the local Public Prosecutor or Additional Public Prosecutor.
 - (m) Three copies to be filed with the records.
 - (n) One copy to the Principal of the Medical College in cases in which the evidence of any member of the staff of such college has been taken.
- (2) The copies referred to in clauses (a) to (n) of sub-rule (1) shall be supplied free of charge.
- (3) Where printed copies can be spared, a copy may be supplied without charge to any person entitled by any law or order to receive a copy free of cost and, in every other case, on payment of the prescribed charges which may be fixed from time to time. All such payments shall be in cash and shall be remitted to the treasury.

Rule - 93. Appointment of printers.

For the purpose of printing Sessions Judgments, Sessions Judges shall employ private printers on such terms as they consider best after calling for competitive quotations. The printing will be in the form, size and quality of paper specified in Rule 95 subject to budget provision and to the condition that the rates do not exceed the ceiling rates as may be fixed by the High Court from time to time.

Rule - 94. Original judgment not to be sent to the printer.

The original judgment shall not be sent to the printer. A fair copy along shall be sent.

Rule - 95. Form of printing.

(1) Printing shall be in clear pica 12 points type on foolscap form and shall be done on both sides of the paper, having an outer margin of 5 cms. and an inner margin of 2.5 cms.; every fifth line in each page being numbered.

(2) The printer's proof shall be corrected by himself. The clear proof shall be sent to the Court for final correction after comparing with the original judgment and it shall thereafter be returned to the printer for printing. The printed copies shall be despatched to the Court together with the fair copy of the judgment and a memorandum showing the number of copies printed and the amount of charges incurred.

CHAPTER XIV COMMUNICATIONS ISSUED TO MAGISTRATES**Rule - 96. Proceedings of the Court of Session.**

All proceedings of the Court of Session addressed to any Magistrate subordinate to the Chief Judicial Magistrate or District Magistrate shall be sent to the Magistrate concerned through the Chief Judicial Magistrate or the District Magistrate as the case may be:

Provided that in cases of urgency or when the law for the time being in force sanctions a different course, the proceedings may be sent direct to the Magistrate, forwarding at the same time a copy thereof to the concerned Chief Judicial Magistrate or District Magistrate, as the case may be.

Rule - 97. Calling for records for appeal or revision without intervention of the Chief Judicial Magistrate or the District Magistrate.

In calling for the records of an inferior Court under Section 385 or 397 of the Code, Sessions Judges may address the Magistrates in whose custody they are, without intervention of the Chief Judicial Magistrate or District Magistrate. The records so called for may be retransmitted directly to the concerned Courts after disposal of the cases.

CHAPTER XV APPEALS AND REVISIONS**Rule - 98. Separate or joint appeals to be preferred.**

Where several accused persons are convicted in a single trial, each of them may prefer an appeal against his conviction either separately or jointly with one or more of the other accused. But when one accused has been convicted at different trials, he shall prefer separate appeal in each case.

Rule - 99. Jail appeals.

No appeal forwarded from jail under Section 383 of the Code shall be summarily rejected until seven days have elapsed after its receipt by the Appellate Court. In forwarding an appeal the officer-in-charge of the jail shall certify that the appellant has been informed that if he intends to appoint a pleader an appearance must be put in within seven days from the date on which the petition may reach the Appellate Court:

Provided that nothing in this Rule oblige the Appellate Court to wait for the full period of seven days, if the appellant has appeared and been heard in person or by pleader within that period.

Rule - 100. Cause title of memorandum of appeal and revision petition.

(1) Every memorandum of criminal appeal other than an appeal presented through a jail officer shall be headed with a cause title setting out the provisions of law under which it is preferred, the name of the Court, names of the appellants and respondents in the Court of appeal and also the full cause title of the case or matter in the lower Court or Courts as the case may be.

(2) When an appellant is in jail, the fact shall be mentioned in the cause title specifying the jail in which he is confined.

(3) The provisions in sub-rules (1) and (2) shall apply, so far as may be, to revision petitions also.

Rule - 101. Cause title of interlocutory proceedings.

Every interlocutory proceedings in an appeal, revision petition or other application may be headed with a short title setting out the provision of law and the names of the parties and their ranks and their status in the main case.

Rule - 102. Enclosures to appeals and revision petitions.

Every memorandum of appeal or revision petition shall be accompanied by a certified copy of the judgment or order of the Court appealed against or sought to be revised and a vakkalath or memo of appearance duly signed where a pleader is engaged.

Rule - 103. Petition to excuse delay to accompany appeals or revision petitions presented out of time.

Where an appeal or revision petition is not presented within the prescribed period of limitation, a petition to excuse the delay supported by an affidavit explaining the circumstances of the delay shall be filed along with the appeal or revision petition.

Rule - 104. Return of defective petitions and their representation.

Every petition or other application which does not comply with the requirements of these rules or is otherwise defective shall be returned to the party or pleader concerned for amendment and representation within a specified time.

Rule - 105. Petition to excuse the delay to accompany appeals out of time on the date of representation.

Every petition or appeal re-presented after the expiry of the time allowed by the preceding rule shall

be accompanied by a petition to excuse the delay supported by an affidavit explaining the delay.

Rule - 106. Posting of appeals or revision for admission.

Every appeal other than one preferred from jail and every revision petition shall be posted for admission at the earliest opportunity after it is filed.

Rule - 107. Copy of order of suspension to be sent to the Superintendent of jail and to the Court which passed the sentence.

Whenever an Appellate Court orders suspension of the execution of the sentence of imprisonment under Section 389 of the Code, it shall send a copy of the order to the Superintendent or officer-in-charge of the jail in which the appellant is confined and to the Court which passed the sentence.

Rule - 108. Prisoner whose sentence is suspended pending appeal to be treated as under-trial one.

When an Appellate Court suspends the execution of a sentence of imprisonment pending disposal of the appeal, the appellant, if detained in jail, shall be treated as an under-trial prisoner.

Rule - 109. Copy of appellate judgment to be furnished to the accused.

The Appellate Court shall, when it confirms or awards a sentence of imprisonment, furnish a copy of its judgment to the accused free of cost.

Rule - 110. Copy of order of dismissal to be sent to the Superintendent of jail.

Whenever an Appellate Court dismisses an appeal, it shall, whether the execution of a sentence is suspended under Section 389 of the Code or not, send a copy of the order dismissing the appeal to the Superintendent or officer-in-charge of jail in which the appellant is or is to be confined.

Rule - 111. Amended warrant to be sent to the Superintendent of jail when sentence of imprisonment is modified and issue of intimation regarding the warrant to the Court which tried the case.

(1) Whenever an Appellate Court other than the High Court modifies a sentence of imprisonment, it shall prepare a fresh warrant in accordance with the terms of the order passed and shall send the same along with a copy of the order direct to the superintendent or the officer-in-charge of the jail in which the appellant is or is to be confined and shall recall and cancel the original warrant of commitment which shall be attached to the record of the original Court and returned to it therewith.

(2) The issue of fresh warrant by the Appellate Court and the name of the prison to which the prisoner is sent shall be intimated to the Court which tried the case.

Rule - 112. Warrant of release to be sent to the Superintendent of jail when sentence of imprisonment is reversed.

Whenever an Appellate Court reverses a sentence of imprisonment, it shall prepare a warrant of release and shall send the same by registered post with acknowledgement due along with a copy of the order direct to the officer-in-charge of the jail, in which the appellant is confined. It shall at the same time recall and cancel the original warrant of commitment which shall be attached to the record of the original Court and returned to it therewith.

Rule - 113. Order of refund of fine.

Whenever an Appellate Court reduces or reverses a sentence of fine, it shall, if the fine has been levied, grant to the appellant an order of refund. When an order of refund is presented to the Court of the first instance, it shall forthwith prepare the necessary payment order and deliver it to the payee without requiring any formal application therefor.

Rule - 114. Order of the High Court on appeal or revision.

Whenever the High Court certifies its judgment or order to a lower Court under Section 388 or 405 of the Code, the latter Court shall issue the necessary warrant of release or modification of sentence or order for the refund of a fine, and, in doing so, it shall be guided, as far as may be, by the provisions of Rules 107 and 110 to 113.

Explanation.-In this Rule the expression "lower Court" means in the case of a judgment or order passed by the High Court on a revision petition against the finding, sentence or order of an Appellate Court, the Appellate Court and not the Court of the first instance.

Rule - 115. Time for presentation of payment order.

An order for the refund of the fine shall, if not presented for payment within the prescribed time, be returned to the Court and may then, after being re-dated and initialled by the Magistrate be re-issued to the payee.

Rule - 116. Duplicate order of the High Court to be sent to the Superintendent of jail.

When an order of the High Court, in an appeal or revision, is certified to a lower Court under Section 388 or 405 of the Code, it shall be issued in duplicate and the lower Court, shall, on receipt of the order, forthwith send one copy of it to the Superintendent or officer-in-charge of the jail in which the prisoner is confined along with the warrant, if any, required by Rule 114. If the order of the High Court is an order of release, one copy shall be sent direct from the High Court to the Superintendent or officer-in-charge of the jail.

Explanation.- In this Rule the expression "lower Court" means in the case of a judgment or order passed by the High Court on a revision petition against the finding, sentence or order of an Appellate Court, the Appellate Court and not the Court of the first instance.

Rule - 117. Copy of judgment to be returned to the prisoner in jail.

The Court, after disposing of an appeal preferred by a convict in jail, shall in communicating its order to the prisoner, return to him through the jail authorities, the copy of the judgment appealed against which accompanied the petition of appeal.

Rule - 118. As many copies of the judgment to be sent as there are prisoners.

In the cases referred to in Rules 107, 110 to 112, 114 and 116 as many warrants shall be prepared as there are prisoners and communicated to the Superintendent or officer-in-charge of the jail in which the prisoners are confined and shall be accompanied or followed as soon as possible by the same number of copies of the judgment or order in accordance with which the warrants are prepared.

Rule - 119. Copy of appellate or revisional judgment to be forwarded to the Subordinate Court.

(1) The Court shall, on the disposal of an appeal or revision, communicate forthwith a copy of its judgment or order to the Subordinate Court from whose judgment or order the appeal or revision had been filed. The steps taken by the appellate or revisional Court to enforce the sentence confirmed or imposed by that Court shall also be communicated to the Subordinate Court.

(2) The Subordinate Court shall, in case it is not the Trial Court, forward the copy of the judgment or order and the communication to the Trial Court.

Rule - 120. Communication of orders on bail applications.

Orders granting or rejecting bail passed by the High Court or the Sessions Court shall be communicated to the Subordinate Courts concerned.

Rule - 121. Return of papers after disposal of appeal etc.

On termination of an appeal, revision petition or application, the Criminal Court to which such appeal, revision petition or application is made shall, on an application in writing made in that behalf by the party or pleader concerned, return, as soon as possible, copies of judgments, orders and other papers filed as enclosures to such appeals, revision petitions or applications. An endorsement on the application for return signed by the party or pleader shall be sufficient voucher for the return of the copies.

Rule - 122. Court to test sufficiency of bail.

When a Court of appeal or revision orders release on bail of a person who has been convicted or committed for trial, the question of the sufficiency of the bail or security shall, unless the Court of appeal or revision itself determines the same, be determined by such Court or Magistrate subordinate to it, as the Court making the order may direct.

Rule - 123. Warrant of release to be issued by the Court testing sufficiency of bail or security.

The Court authorised to test the sufficiency of the bail or security shall, when satisfied as to the sufficiency of the bail or security forward to the officer-in-charge of the jail in which the accused is confined a warrant for the release of the prisoner in pursuance of the order and shall further, in cases where bail is ordered by a superior Court, report to that Court whether or not bail has been furnished.

Rule - 124. Court to test sufficiency of security under Section 106 or Section 117 of the Code.

When an order to give security is made under Section 106 or Section 117 of the Code, the question of sufficiency of the security shall be determined by the Court or Magistrate by whom the order was made:

Provided when an order to give security is made under Section 106 of the Code by an appellate or revisional Court when exercising its power of appeal or revision, the question of sufficiency of the security shall, unless the said Court itself determines it, be determined by such other Court or Magistrate subordinate to it as it may direct.

CHAPTER XVI REFERENCE

Rule - 125. Sessions Judges to revise case which call for revision.

(1) The Sessions Judge shall carefully peruse all judgments and orders submitted to him with calendar statements with a view to exercise his powers of revision and shall deal with any case under Section 399 of the Code.

(2) In the absence of any urgency, the Sessions Judge shall not exercise his power of revision under Section 399 of the Code in cases where an appeal is provided by law, until the time allowed for the appeal has expired.

Rule - 126. The Chief Judicial Magistrate to comply with the requisitions of the Sessions Judge.

Chief Judicial Magistrates shall comply with all requisitions for records and information made by the Sessions Judges. They shall also furnish any explanation which the Sessions Judges may require from them or from the subordinate Magistrates in such cases.

Rule - 127. Explanation of the erring Magistrates.

In cases where the Sessions Judge on perusing the calendar is of opinion that a judgment or order calls for revision under Section 399 of the Code, he shall obtain the explanation of the erring Magistrate concerning the alleged error. The explanation shall be obtained through the Chief Judicial Magistrate.

Rule - 128. Calling for records.

In cases where the Sessions Judge is of opinion that the judgment or order calls for revision under Section 399 of the Code, he may call for the record of the case.

Rule - 129. Recommendations to Government to remit or commute sentence

Whenever a Sessions Judge or a Magistrate is of opinion that there are grounds for recommending to the Government the exercise of the powers vested in them under Section 432 or 433 of the Code of remitting or commuting any sentence adjudged by the Criminal Courts, the recommendation for remission or commutation of the punishment shall be submitted to the Government-

- (a) through the High Court when made by a Sessions Judge;
- (b) through the Sessions Judge and the High Court when made by a Chief Judicial Magistrate; and
- (c) through the Chief Judicial Magistrate and the High Court, when made by any Magistrate other than the Chief Judicial Magistrate or Additional Chief Judicial Magistrate.

Rule - 130. Report of the Presiding Judge on reference under Section 432 of the Code to be forwarded to Government through the High Court.

In cases in which the opinion of the Presiding Judge is called for by the Government under sub-section (2) of Section 432 of the Code, the same shall be forwarded by the Presiding Judge through the High Court, whether the requisition for the opinion has been received through the High Court or not.

Rule - 131. Reference to Government in case of infanticide.

In all cases where women are convicted for the murder of their infant children, a reference shall be made through the High Court to the Government with an expression by the Sessions Judge of his opinion as to the propriety or otherwise of reducing the sentence. Every such reference shall be accompanied by copies of the material papers of the record.

CHAPTER XVII JUDGMENTS AND CALENDARS

Rule - 132. Judgment to contain certain particulars.

The judgment in original decision shall, apart from the particulars prescribed by Section 354 of the Code also contain a statement in Tabular form giving the following particulars, namely:

Serial Number	Name of the Police Station and the Crime No. of the offence	Description of the accused					Date of										Explanation of delay
		Name	Father's name	Occupation	Residence	Age	Occurrence	Complaint	Apprehension	Release on bail	Commitment	Commencement of trial	Close of trial	Sentence or order	Service of copy of judgment or finding on accused		
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	

Note.-

- (1) Date of complaint in column 9 shall be the date of the filing of the charge sheet in respect of case instituted on police report and the date of filing of the complaint in respect of other cases.
- (2) Date of apprehension in column 10 shall be the date of arrest.
- (3) Date of commencement of trial in column 13 shall be:
 - (a) In summons cases, the date on which the particulars of the offence are stated to the accused under Section 251 of the Code.
 - (b) In warrant cases instituted on police report, the date on which the documents under Section 207 of the Code are furnished to the accused and the Magistrate satisfies himself of the same under Section 238 of the Code.
 - (c) In other warrant cases, when the recording of evidence is commenced under Section 244 of the Code.
 - (d) In Sessions trials, when the charge is read out and explained to the accused under Section 228 of the Code.

Rule - 133. Judgments to show if the accused was defended.

- (1) In the preface of judgments, the name of the person who conducted the prosecution and the name of the person, if any, defending the accused shall also be noted.
- (2) The name of the Police Station concerned and the Crime Number of the offence shall also be noted in the preface of the judgment.

Rule - 134. The list of witnesses to be appended to the Judgement.

There shall be . appended to every judgment a list of witnesses examined by the prosecution and for the defence and by the Court and also a list of exhibits and material objects.

Rule - 135. Judgment to specify offences in respect of which sentence is passed.

When an accused person is convicted of two or more offences and when award of separate sentences for such offences is not forbidden by law, the Court shall award a sentence for every offence for which a conviction has been recorded.

Rule - 136. Provision under which convicted to be clearly stated.

When an accused person is convicted under a Section of the Indian Penal Code or any other law which contains two or more sub-sections with different punishments prescribed for the various offences dealt with therein, the judgment shall state under which sub-section the accused is charged and convicted.

Rule - 137. Reasons for severe or lenient punishment to be recorded.

In every Sessions trial in which a sentence of exceptional severity or unusual leniency is passed or in which punishments of varying degrees are awarded to different persons convicted of the same offence in one trial, the reasons which guided the judge in the determination of the amount of punishment shall be recorded.

Rule - 138. Value of property to be stated in the case of theft etc.

In all cases of theft and other offences against property the approximate value of the property involved, shall be specified in the judgment to enable the Court of appeal or revision to form an opinion as to the adequacy or otherwise of the sentence passed.

Rule - 139. Calendar to state whether previous conviction was proved or confessed.

When enhanced punishment is awarded on account of previous convictions, it shall be stated in the judgment that the previous conviction was charged and proved or confessed.

Rule - 140. The date of institution to be the date for purposes of duration.

When a criminal appeal or revision case is remanded, re-admitted or transferred from one Court to another, the date for the purpose of calculating its period of pendency shall be the date of original institution.

Rule - 141. Particulars of previous conviction when to be stated.

Except in cases of acquittals, particulars of previous convictions and sentences when relevant shall

be stated at the end of the judgments of Courts of first instance, in all cases where these rules require a judgment to be submitted to a superior Court. Where no judgment is required to be submitted but only a tabular statement (whether monthly or otherwise) particulars of previous convictions and sentences shall be entered in the column of remarks.

Rule - 142. Sentences of fine and Calendars in such cases.

Any Magistrate sentencing an accused person to fine with imprisonment in default of payment, shall allow him reasonable time for the payment of the fine. The calendars in such cases shall contain information in the column for remarks as to the payment of the fine and the orders passed to facilitate such payment.

Rule - 143. Tabular statement to be given in appeal judgment.

The appeal judgment shall contain the particulars in a tabular statement in Judicial Form No. 51.

Rule - 144. Summary dismissal of appeal.

When an appeal is rejected under Section 384 of the Code, the judgment shall contain a statement, if the fact be so, that the Court has perused the petition of appeal and a copy of the judgment or order appealed against and had heard the appellant or his pleader, as the case may be, if they appeared or, if the fact be so, that the appellant was called on the date fixed and did not appear either in person or by pleader.

Rule - 145. Copies of appellate judgments passed by Sessions Judges and Additional Sessions Judges to be submitted to the High Court.

Sessions Judges shall with the least practicable delay transmit to the High Court copies of the appellate judgment passed by them. Additional Sessions Judges shall send copies of such judgment to the High Court through the Sessions Judge. The copies of the judgment shall be accompanied by the copies of the judgment and calendar of the Trial Court.

Rule - 146. Court of Session to send printed judgments to the High Court.

- (1) Courts of Sessions shall, transmit to the High Court printed copies of all their judgments in original trials, as far as possible, within two weeks from the date of pronouncing judgements in each case.
- (2) Additional and Assistant Sessions Judges shall transmit such copies through the Sessions Judge.
- (3) The Sessions Judge, shall, while forwarding the judgments of an Assistant Sessions Judge, state whether an appeal has been preferred before his Court from the judgment.

Rule - 147. Delay in trials to be explained.

Whenever more than three months have elapsed between the date of apprehension of the accused and the close of the trial in the Court of Session, and explanation of the cause of delay (in whatever Court it may have occurred) shall be furnished, while transmitting the copy of the judgment.

Rule - 148. Cases in which calendar statement and judgment should be sent by Magistrates.

(1) All Magistrates shall submit to the Chief Judicial Magistrate a calendar statement in each case tried by them in Judicial Form No. 48 except in the following cases, namely;-

(i) Cases dealt with under Sections 204(4), 249, 252 and 256 of the Code;

(ii) Cases relating to offences falling within Sections 277, 278, 279, 285, 286, 289, 290, 323, 334, 336, 341 and 352 of the Indian Penal Code;

(iii) Cases relating to offences against the Panchayat and Municipal Acts and the conservancy clauses of the Police Act punishable with fine or with imprisonment not exceeding one month;

(iv) Cases relating to offences under the Central Excise and Salt Act;

(v) Cases relating to offences under the Hackney Carriage Act;

(vi) Cases relating to offences under the Abkari Act;

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(viii) Cases relating to offences under the Cattle Trespass Act;

(ix) Cases relating to offences under the Traffic Rules;

(x) Cases relating to offences under the Prevention of Cruelty to Animals Act; and

(xi) Cases relating to offences under the Registration of Births and Deaths Act.

(2) A copy of the judgment or a copy of the order of discharge in the event of a case terminating in the discharge of an accused, otherwise than under Section 249 of the Code shall accompany the calendar statement.

Rule - 149. Chief Judicial Magistrate to transmit judgments received to the Sessions Judge.

(1) The Chief Judicial Magistrate shall forward to the Sessions Judge the judgments and orders received from Judicial Magistrates of the first class under Rule 148 with the least possible delay with his remarks, if any.

(2) The judgments and orders received from Second Class Magistrates under Rule 148 shall be

forwarded by Chief Judicial Magistrate with his remarks to the Sessions Judge only if, on scrutiny, he finds anything irregular or illegal in such judgment or order.

Rule - 150. Calendar statement when to be submitted.

Every calendar statement under Rule 148 and extract from the register of Committal Proceedings shall be submitted to the Chief Judicial Magistrate within three days from the close of the proceedings.

Rule - 151. Monthly statements by Judicial Magistrates.

- (1) All Judicial Magistrates shall submit to the Chief Judicial Magistrate a monthly statement in Judicial Form No. 49 in respect of all cases exempted under Rule 148.
- (2) The monthly statement shall be submitted not later than eighth day of the month following that to which the statement relates.
- (3) Particulars of cases transferred to other Courts and to the register of long pending cases shall be furnished in column 13 of the Judicial Form No. 49.

Rule - 152. Supervision by Chief Judicial Magistrates.

- (1) Every Judicial Magistrate shall submit to the Chief Judicial Magistrate during the first week of every month a statement in Administrative Form No. 45 showing the cases pending on his file at the close of the previous month.
- (2) The Chief Judicial Magistrate shall scrutinise the statement referred to in sub-rule (1) and issue such directions as may be deemed fit.

Rule - 153. Copies of judgments to be transmitted by the Chief Judicial Magistrates to the Courts of Session.

The Chief Judicial Magistrate and Additional Chief Judicial Magistrate shall submit to the Court of Session (the Additional Chief Judicial Magistrate through the Chief Judicial Magistrate) copies of all judgments and of all orders of discharge made otherwise than under Section 249 of the Code within five days from the date of pronouncement by them of the judgement or order. Judgements and orders submitted under this Rule shall be accompanied by a statement in the tabular form prescribed in Rule 132.

Rule - 154. Special report may be sent in any particular case.

When a Sessions Judge finds it necessary to comment specially on any action of a Judicial Magistrate in connection with a case coming before his Court, he may make a report on the subject to the High Court without waiting for the despatch of the monthly calendars.

Rule - 155. Copy of the judgment of the Chief Judicial Magistrate and other Magistrates to be sent to the Head of the Department through the High Court.

- (1) Where in a judgment or order, a Sessions Judge or a Chief Judicial Magistrate comments

adversely on the character or conduct of any Government servant and if the matter is considered a serious enough to call for departmental enquiry or action, the copy of the judgment or order shall be forwarded to the Head of the Department or the immediate superior of the Government servant concerned through the High Court.

- (2) When a Magistrate subordinate to the Chief Judicial Magistrate considers, in a case disposed of by him, that such action is necessary, he shall submit a separate copy of the judgment or order to the Chief Judicial Magistrate, and if the Chief Judicial Magistrate, is of opinion that the matter is serious enough to call for departmental action or enquiry, he shall forward a copy of the judgment or order to the Head of the Department or immediate superior of the Government servant concerned through the High Court.

Rule - 156. Copies of judgments to be sent to the Chemical Examiner etc.

In all cases where the opinion of any of the following authorities has been received in evidence, a copy of the judgment shall be forwarded to him.

- (1) The Chemical Examiner to the Government of Kerala.
- (2) The Director of State Forensic Science Laboratory.
- (3) The Scrologist and the Chemical Examiner to the Government of India, Calcutta.

Rule - 157. Copies of judgments to be forwarded to the Home Secretary.

The Court shall forward to the Home Secretary to the State Government through the High Court a copy of judgment or order in all cases relating to offences under the Protection of Civil Rights Act, 1955 (Central Act 22 of 1955).

Rule - 158. Copies of judgments to be forwarded to the Principal of Medical College.

The Court shall forward to the Principal of the concerned Medical College a copy of its judgment or final order in cases in which the evidence of any member of the staff of such college has been taken.

Rule - 159. Copies of judgments to be forwarded to the Bar Council.

The Court shall forward to the Bar Council of Kerala, Cochin through the High Court, a copy of the judgment in cases where an advocate is convicted for a criminal offence or where the conduct of an advocate is adversely commented upon.

Rule - 160. Extra copy of the judgment or order to be placed with the records.

An extra carbon copy of the judgment or order shall also be placed with the records along with the fair judgment or order.

Rule - 161. Copies of judgments to be supplied to the Prosecutor.

The Court shall supply a copy of its judgment or order free of cost to the Public Prosecutor or the Assistant Public Prosecutor, as the case may be, on his written request.

CHAPTER XVIII EXECUTION OF SENTENCES

Rule - 162. Committal warrants.

(1) Where a person is sentenced to a term of imprisonment, a warrant of commitment shall be written up immediately after conviction. In case it is not issued immediately the reasons therefor shall be noted in the case file.

(2) Every warrant of commitment on a sentence of imprisonment or fine shall be sealed with the seal of the Court.

Rule - 163. Period of detention to be shown in warrant.

The period during which the accused has been in custody pending investigation, enquiry and/or trial shall be shown in every warrant of commitment.

Rule - 164. Separate warrant for each prisoner.

When two or more persons are convicted and sentenced to imprisonment at the same time, a separate warrant of commitment shall be issued for each one of them.

Rule - 165. No fresh warrant to be issued in cases under Sections 432, 433 or 434 of the Code.

In cases in which the Central Government or the State Government suspends, remits or commutes a sentence under Sections 432, 433 or 434 of the Code, and, in cases in which the President or the Governor grants under Article 72 or Article 161, as the case may be, of the Constitution, pardon, reprieve or remission, no fresh or revised warrant need be issued.

Rule - 166. Convicts to be classified as Habitual or Casual.

(1) Whenever possible, a Court which convicts an accused person shall decide whether he is to be classified as a "habitual" or "casual" convict and make a note of the decision on the warrant of commitment for information of the jail authorities.

(2) The following persons are liable to be classified as habitual criminals:-

(i) Any person convicted of an offence punishable under Chapters XII, XVII and XVIII of the Indian Penal Code whose previous conviction or convictions taken in conjunction with the facts of the case on hand show that he is by habit a robber, a house-breaker, dacoit, thief or receiver of stolen property or that he habitually commits extortion, cheating, counterfeiting coin, currency notes or stamps or forgery.

(ii) Any person convicted of an offence punishable under Chapter XVI of the Indian Penal Code whose conviction or convictions taken in conjunction with the facts of the case on hand show that he habitually commits offences against person.

(iii) Any person committed to or detained in prison under Section 122 read with Section 109 or 110 of

the Code.

(iv) Any person convicted of any of the offences specified in clause (i) above, when it appears from the facts of the case, even though no previous conviction has been proved, that he is by habit a member of a gang of dacoits or of thieves or a dealer in stolen property; and

(v) Any person convicted by a Court or Tribunal acting outside India under the general or special authority of the Central Government of an offence which would have rendered him liable to be classified as a habitual criminal, if he had been convicted in a Court established in India.

Explanation.-For the purposes of this Rule, the word "conviction" shall include an order under Section 117 read with Section 110 of the Code.

(3) The classification of a convicted person as a habitual criminal shall ordinarily be made by the convicting Court but if the convicting Court omits to do so, such classification may be made by the Chief Judicial Magistrate or in the absence of an order by the convicting Court or the Chief Judicial Magistrate and pending the result of a reference to the Chief Judicial Magistrate, by the officer-in-charge of the jail where such person is confined:

Provided that any person classified as a habitual criminal may apply for a revision of that order.

(4) The convicting Court or the Chief Judicial Magistrate may for reasons to be recorded in writing, direct that any convicted person or any person committed to or detained in prison under Section 122 read with Section 109 or 110 of the Code shall not be classified as a habitual criminal and may revise such direction.

(5) Convicting Courts or Chief Judicial Magistrates, as the case may be, may revise their own classifications and the Chief Judicial Magistrate may alter any classification of a prisoner made by a convicting Court or any other authority, provided that the alteration is made on the basis of facts which were not before such Court or authority.

Note.-For the purposes of this Rule, the expression "Chief Judicial Magistrate" shall mean Chief Judicial Magistrate of the district in which the person was convicted, committed or detained.

CHAPTER XIX LEVY AND RECOVERY OF FINES

Rule - 167. Levy of fine to be endorsed on the warrant or notified to the jail authorities.

When an accused person is sentenced to imprisonment as well as fine, the warrant issued to the jail authorities shall contain definite information as to whether the fine has been paid or not in whole or in part.

Rule - 168. Subsequent recovery of fine to be notified to the jail authorities.

When fine is paid or recovered in whole or in part after the issue of warrant of commitment, the Court shall intimate that fact to the jail authorities. Such intimation shall bear the seal of the Court and shall be acknowledged by the jail authorities and the acknowledgement shall be filed by the Court for future reference. On receipt of the intimation from Court, the jail authorities shall endorse the information on the warrant. Such intimation, if sent by post, shall be by registered post with acknowledgement due.

Rule - 169. Warrants of commitment returned after execution to form part of the records of the cases.

Warrants of commitment which are returned to Courts after the execution of sentences shall be filed with the records of the respective cases and dealt with under the Rules for the destruction of records.

CHAPTER XX NOTIFICATION OF RESIDENCE BY RELEASED CONVICTS**Rule - 170. Notification of residence by released convicts.**

(1) When an order has been passed under Section 356 of the Code that a convict shall notify his residence and change of residence after release for a specified term, the Court or Magistrate passing such order shall enter a record thereof in the warrant of commitment issued under sub-section (1) of Section 418 of the Code in respect of such convict.

Rule - 171. Convict to state particulars of his intended residence.

A convict in respect of whom such an order has been passed shall, when called upon by the officer-in-charge of the jail in which he is confined, state before his release the place at which he intends to reside after his release naming the village or town or the street therein.

Rule - 172. Convict to notify the nearest Police Station.

After release and on arrival at his residence, he shall within 24 hours notify at the nearest Police Station that he has taken up residence accordingly.

Rule - 173. Intention to change residence to be notified.

Whenever he intends to change his residence, he shall, not less than two days before making such change, notify his intention at the nearest Police Station giving the date on which he intends to change his residence and the name of village or the town and the street in which he intends to reside, and, on arrival at such residence, he shall within 24 hours notify at the nearest Police Station that he has taken up his residence accordingly.

Rule - 174. Reasonable time to change residence.

The officer recording an intimation under Rule 171 or 173 shall, fix such period as may be reasonably necessary to enable the convict to take up his residence in the place notified. If the convict does not take up his residence in such place within the period so fixed he shall not later than the day following the expiry of such period, notify his actual place of residence to the officer-in-charge of the Police Station within the limits of which he is residing.

Rule - 175. Intention of absence between sunset and sunrise.

Whenever a released convict intends to be absent from his residence between sunset and sunrise he shall inform his intention at the nearest Police Station stating the time and purpose of such absence and the exact address where he can be found during that period.

Rule - 176. Information to be given of change.

Every information required to be given by the foregoing rules shall be given by the released convict in person, unless prevented from doing so by illness or other sufficient cause, in which case the

information required shall be given by a letter duly signed by him.

Rule - 177. Officer to certify receipt of notice.

Whenever a released convict gives any information required by the foregoing Rules, he shall be furnished with a certificate to the effect that he has given such information by the officer to whom he gives it.

Rule - 178. Copy of order and the rules to be served on the convict.

A copy of the order specified in Rule 170 shall be served on the convict before his release from jail. A copy of these Rules shall also be given to him and the substance thereof fully explained to him in a language he understands. He shall also be informed for what period he is bound to observe these rules and that any neglect or failure to comply with them will render him liable to punishment as if he had committed an offence under Section 176 of the Indian Penal Code.

Rule - 179. Police to call upon convict and serve notice.

If a convict in respect of whom an order has been passed under Section 356 of the Code, has been released from jail without a copy of the said order having been served upon him and the other formalities specified in these rules having been complied with, he may at any time, while the order remains in force, be called upon by the police to report himself on a given day at a Police Station near the place where he is found and, on his reporting himself, the copy of the order shall be served on him and the other formalities prescribed in Rules 171 and 173 shall be complied with.

Rule - 180. Convicts without fixed place of abode.

In applying the above Rules to the case of a wandering man, who has no residence in the sense of a fixed place of abode, the place where he sleeps shall be treated as his residence even if he remains there only one night.

CHAPTER XXI DISPOSAL OF PROPERTY

Rule - 181. Gold and Silver to be tested.

(1) Gold and silver and articles made thereof produced in Court shall be got tested by a goldsmith and a certificate obtained from him showing their weight and genuineness shall be kept along with the articles.

(2) A reasonable remuneration may be paid to the goldsmith at the discretion of the presiding officer of the Court.

Rule - 182. Classification of valuables.

The Court shall treat as valuables only articles like gold, silver, coins, currency notes, fountain pens, wrist watches etc. which can be easily converted into money. Articles which cannot be sealed and kept in iron safes or chests in the Treasury owing to their size need not be treated as valuables, though they may otherwise be valuable.

Rule - 183. Entry of valuables in property register.

Entry relating to valuables shall be made in red ink in the property register.

Rule - 184. Maintenance of property register.

(1) The entries in the property register (Administrative Form No. 23) shall be made by the person who is in charge of the articles.

(2) Each material object should have attached or affixed to it a label to show the number of the case to which it relates and the party from whom it has been received or recovered. The label should also bear the number of the item in the property register. The label shall be in the following form, namely:-

(i) Property Register No. and Year:

(ii) Case No.:

(iii) Name of person from whom received:

(iv) Address:

(3) The properties shall be entered in the register in the order in which they are received, assigning a separate number to each item. The register shall be renewed every year and the undisposed of items in the previous year shall be carried forward under the same number. Whenever the register is renewed, a certificate should be entered after the last entry in the old register and also in the opening page of the new register that all the pending items have been carried over in the new register.

(4) Non-valuables shall be entrusted with the property clerk or any other clerk authorised for the purpose. Valuables shall be entrusted to the Head Clerk in Sessions Courts and Courts of Chief Judicial Magistrates and the Chief Ministerial Officer in other Subordinate Courts.

(5) The entries shall be countersigned by the Chief Ministerial Officer or the Sheristadar in cases where the entries are not made by them. The Presiding Officer shall also countersign the entries.

Rule - 185. Disposal of counterfeit coins, forged currency notes and arms and ammunition.

(1) When counterfeit coins have to be disposed of by a Criminal Court under Sections 452, 457 or 458 of the Code, they shall be forwarded with any dies, moulds etc. which may have been produced in the case, to the nearest treasury or sub-treasury with a request that they may be remitted to the mint. A concise and accurate report shall also be sent containing a description of the case and the sentence imposed.

(2) In cases involving forgery of currency notes, the disposal of implements such as moulds, dies etc. produced and confiscated by a Court of law is a matter for decision of the Court which tries the case and when they are ordered by the Court to be delivered to the police for destruction, the police themselves shall arrange for their destruction and not send them to the currency offices or mint for destruction:

Provided that, if the police consider that any particular implements are of special interest and should be preserved, they shall make them over to the Criminal Investigation Department for this purpose.

(3) All forged currency notes brought before the Court shall be handed over to the Police for being forwarded to the issue department of the Reserve Bank of India with a brief report of the case. An

intimation regarding such handing over shall simultaneously be sent by the Court to the issue department of the Reserve Bank of India.

(4) All arms and ammunitions whether of prohibited bore or not which are confiscated shall be sent to the nearest arsenal for disposal:

Provided that any item of special interest may be made over by the Court to the Forensic Science Laboratory on the request of the authorities concerned.

Rule - 186. Disposal of property to be deferred pending appeal in certain cases.

In all appealable cases, the disposal of the counterfeit coins, forged currency notes and implements such as moulds and dies in accordance with the previous rule, shall be deferred till the period of time allowed for preferring an appeal expires, and in the event of an appeal, until it is disposed of.

Rule - 187. Disposal of excisable goods in Court custody.

In the case of excisable goods held in custody of Criminal Courts, notice of the date of auction or other method of disposal shall be issued to the Excise Authority concerned requiring such authority to arrange for the collection of the duty leviable, if any, on the goods and for the issue of a transport permit where necessary. The Excise Authority may also be required to satisfy that the purchaser in auction or otherwise is licensed to deal in such goods.

Rule - 188. Sale of certain confiscated items to be advertised.

When the value of any confiscated article to be sold by auction is estimated to exceed Rs. 1000 the Court may advertise the sale in newspapers or by such other method as it deems fit. The expenses of advertisement shall be paid out of the sale proceeds.

Rule - 189. Seizure of livestock.

(1) Livestock seized as material objects shall ordinarily be entrusted to the custody of the person from whom they were seized or of the person at whose instance they were seized or of any other person whom the Court considers suitable and competent, provided that the person to whose custody the livestock is entrusted undertakes to feed and maintain them at his expense and enters into a bond with one or more sureties for their production whenever called upon to do so and for their safe custody and maintenance.

(2) The Court may, if it thinks fit, instead of proceeding under sub-rule (1) order the police officers in cases charged by them or officers of that Court to take possession of such livestock and maintain the same at reasonable charges.

(3) Courts shall take particular care to see that such cases are disposed of as expeditiously as possible.

CHAPTER XXII FINES

Rule - 190. Warrant for levy of fine.

(1) A warrant for the levy of a fine by attachment and sale under clause (a) of sub-section (1) of Section 421 of the Code shall be directed to a Police Officer and shall be in Form No. 43 of Schedule II to the Code.

(2) The authority issuing the warrant shall specify a time limit for the sale of the attached property and for the return of the warrant.

(3) The following articles shall not be liable to attachment or sale, namely:-

the necessary wearing apparel, cooking vessels, beds and bedding of the offender or his wife and children and such personal ornaments, as in accordance with the custom or religious usage, cannot be parted with by a woman.

(4) The attachment of the movable property belonging to the offender shall be made by seizure:

Provided that where in addition to or in lieu of seizure, the Police Officer considers that either or both of the methods referred to in clauses (b) and (c) of sub-section (3) of Section 83 of the Code shall be adopted, he shall report the matter to the Court issuing the warrant and the Court shall thereupon pass appropriate orders.

(5) When the method referred to in clause (b) of sub-section (3) of Section 83 of the Code is adopted and a Receiver is appointed, the powers, duties and liabilities of such receiver shall be the same as those of a receiver appointed under Order XL of the First Schedule of the Code of Civil Procedure, 1908 (5 of 1908).

(6) The Police Officer who makes an attachment of movables under sub-rule (4) may after attachment hand over the articles attached to a third party on a bond being executed for their custody and production before the Court when required.

(7) Before making the attachment, the Police Officer shall deliver or tender a copy of the warrant to the offender or, in his absence, to any adult male member of his family. If a copy cannot be so delivered or tendered, the Police Officer shall affix a copy of the warrant at some conspicuous place where the property to be attached is found. After making the attachment, the Police Officer shall in like manner deliver, tender or affix, as the case may be, an inventory of the property attached.

(8) If no claim is preferred to any property attached within one month from the date of attachment, by any person other than the offender the Police Officer executing the warrant shall have power to sell, within the time mentioned in the warrant and without previous reference to the Court issuing the warrant, the property or such portion thereof as may be sufficient to satisfy the amount to be levied:

Provided that if the property attached consists of livestock or is subject to speedy and natural decay, or, if its immediate sale would be for the benefit of the owner, the Police Officer may sell it at once but the proceeds of the sale shall not be appropriated towards the fine until the expiration of one month from the date of attachment or until the claim, if any, preferred under sub-rule (9) has been disposed of, whichever is later.

(9) If a claim is preferred to any property attached within one month from the date of attachment by any person other than the offender on the ground that the claimant has an interest in such property and that such interest is not liable to attachment, the claim shall be enquired into and disposed of as provided for in sub-rules (11) and (12).

(10) Claims may be preferred under sub-rule (9) in the Court by which the warrant is issued or if the claim relates to property attached under a warrant endorsed by a District Magistrate under Section 422

of the Code, in the Court of the Chief Judicial Magistrate of the District in which the attachment is made.

(11) Every such claim shall be enquired into and disposed of by the Court in which it is preferred:

Provided that the Chief Judicial Magistrate may make over any claim preferred in his Court to any Magistrate of the First or Second Class subordinate to him.

(12) The enquiry shall be summary and the Court shall record its decision on the claim with reasons therefor. Such decision shall be final and shall forthwith be communicated to the Police Officer executing the warrant, who shall dispose of the property in accordance therewith.

(13) Any claim preferred within the period allowed by this Rule may in the event of the death of the claimant be continued by his legal representative.

(14) The Police Officer executing the warrant shall, as soon as possible, after the sale, produce the sale proceeds before the Court issuing the warrant and if the property was sold under a warrant endorsed by a District Magistrate under Section 422 of the Code, before the Court of the Chief Judicial Magistrate of the District in which the attachment is made.

(15) Subject to the provision of sub-section (1) of Section 421 of the Code and subject also to Section 70 of the Indian Penal Code, if at any time subsequent to the return of the warrant, the fine or any part thereof remains unpaid and the Court has reasonable grounds for believing that the offender has any movable property, it may issue a fresh warrant for the attachment and the sale of such property in accordance with the provisions of the Code and these Rules.

Rule - 191. Register of fines to be maintained.

The account of fine imposed, levied and refunded shall be kept in Administrative Form No. 20.

Rule - 192. Entries to be made immediately.

Every fine as soon as it is imposed shall be recorded in the register and the entry shall at once be initialled by the Judge or Magistrate in the appropriate column.

Rule - 193. Receiving of the amounts.

Payments towards fine shall be received by the clerk authorised for the purpose in the presence of the Judge or Magistrate. Acquittance receipts in Administrative Form No. 42 signed by the Judge or Magistrate himself shall be granted and, who, when signing them shall initial the record of payment in the appropriate column of the fine register.

Rule - 194. Remittance to the treasury.

All fines received by Courts shall be remitted into the treasury without delay. When there is a treasury at the same station, remittance shall ordinarily be made on the same day or at least on the next working day. In other cases arrangements shall be made for remittance within three days.

Rule - 195. Crediting of fines.

All fines recovered by Courts shall immediately be credited to Government. Any payment out of the

fine so realised required to be made by any order of Court or under any law for the time being in force, shall be made in accordance with the rules or instruction issued in that behalf.

Rule - 196. Statement of fines to be submitted.

(1) On the last day of each month, every Magistrate shall transmit to the Chief Judicial Magistrate statements in Administrative Form No. 32 showing the amount of fines imposed, realised and written off for the treasury month.

(2) The Chief Judicial Magistrate shall review the monthly progress made in the collection of fines.

(3) Subordinate Judges and Munsiffs imposing any sentence of fine under Section 345 of the Code or other provision of law shall, on the last day of each month, transmit similar statement to the District and Sessions Judge.

Rule - 197. Writing off of fines.

(1) Cases in which sanction to write off irrecoverable fines is required shall be entered in Administrative Form No. 33 to be printed on the back of Form No. 32.

(2) When any fine remains uncollected for three months, details thereof shall be given below the statement of fines (Administrative Form No. 32) with an explanation why it remains uncollected and why it is not proposed to treat it as irrecoverable.

Rule - 198. Verification of fine statements.

The monthly fine statement shall be submitted to the Chief Judicial Magistrate or the District Judge through the treasury officer who shall verify the amounts as having been remitted to treasury and, if the entries relating to remittances agree with his accounts, sign a certificate to that effect.

Rule - 199. Realisation of fine imposed by another Court.

For the purposes of the statement prescribed in this Chapter, a Court realising a fine imposed by another Court shall treat it as if it had been imposed by itself, sending notice of recovery to the Court which imposed the fine.

CHAPTER XXIII PAYMENT OF COMPENSATION

Rule - 200. Payment of amount of compensation under Section 357 of the Code.

(1) The Court by which a fine or any portion of a fine has been awarded as compensation under Section 357 of the Code, shall, on the application of the person to whom such compensation has been awarded, issue an order for payment of the amount awarded to the treasury to which such amount has been remitted together with a certificate to the effect that either (i) the sentence and award are not subject to appeal or have been confirmed by the Appellate Court and that no order has been received from the Court of revision modifying or reversing the order of compensation or (ii) where the order as to compensation has been modified in appeal or revision that the payment order is in conformity with such modification or (iii) that the appeal time has expired and that no appeal has been preferred and that no order has been received from the Court of revision modifying or reversing the order of compensation.

(2) If the fine is imposed in a case which is subject to appeal, the order for payment shall not be issued till the expiry of the period allowed for presenting the appeal or, if an appeal be presented, before the decision of the appeal.

Rule - 201. Certificate as to appeal.

In cases in which the Court awarding the compensation may be unable to certify whether an appeal has been actually preferred, the party desirous of obtaining the payment of the amount of compensation in deposit may apply to the Appellate Court to certify whether or not any appeal has been preferred, and on such application being made the Appellate Court shall grant the required certificate.

Rule - 202. Compensation otherwise than under Section 357 of the Code.

Compensation awarded under Sections 250 and 358 of the Code, and compensation and all other sums recoverable like fines under any other provision of law and not creditable to the State as fine shall be dealt with in the manner provided in the foregoing Rules for compensation awarded under Section 357 of the Code, provided that if the order to pay such compensation or other sum is reversed or modified in appeal or revision, the payment order on the treasury shall be given to the party or parties entitled to the refund of the amount.

Rule - 203. Deposit in treasury and payment of compensation amount.

(1) Compensation awarded under Sections 250, 357 or 358 of the Code and compensation and all other sums recoverable like fines which cannot be entered in columns 4 and 5 of the fine register (Administrative Form No. 20) shall be entered in column 7 thereof and the collection of such amount shall be entered in column 15.

(2) The amounts mentioned in sub-rule (1) shall be retained in deposit in the treasury subject to the order of the Court awarding compensation or of the Court of appeal or revision.

(3) The amount retained in deposit under sub-rule (2) shall be paid to the party entitled to the compensation or other sum, on such party producing before the Treasury Officer an order for a payment issued under Rule 200.

Rule - 204. Refund on reversal of order.

Where an order for payment of compensation under Sections 250 and 358 of the Code, or other sums recoverable as fines is reversed or modified in appeal or revision, the payment order on the treasury shall be given to the party or parties entitled to the refund.

Rule - 205. Application for refund of lapsed deposits.

Applications for refund of lapsed deposits shall be made to the Courts which remitted the amount.

CHAPTER XXIV BATTAs

Rule - 206. Cases in which the Government will pay batta.

(1) Subject to the Rules hereinafter contained, the allowances to complainants and witnesses (whether for the prosecution or for the defence) shall be paid by the Court in the

following classes of cases, namely:

- (a) Cases shown in the First Schedule of the Code as non-bailable;
- (b) Cases in which prosecution is instituted or carried on under the orders or with the sanction of the Government or of any public servant acting as such;
- (c) Cases in which the witness has been compelled to attend by a process issued under Section 311 of the Code;
- (d) Cases in which the Court certifies that the attendance of such witness was in furtherance of the interests of public justice.

Rule - 207. Batta by private complainants and by accused.

In cases other than those coming under the preceding Rule the complainant or the accused, as the case may be, shall deposit in Court the allowances for the witnesses cited by him. The party citing the witness shall subject to the approval of the Court, fix the class in which the witness is to be placed with due regard to his station in life.

Rule - 208. Person taking part in identification parade conducted by a Magistrate entitled to subsistence expenses.

If a person taking part in an identification parade held by a Magistrate appears before him in response to a summons issued by him or at his direction or order, he shall be paid allowances at the rates specified in these Rules:

Provided that a Magistrate may for reasons to be recorded in writing disallow such allowances.

Rule - 209. Advance payment.

The Court may make reasonable advance payment of allowances to witnesses summoned to give evidence or produce documents.

Rule - 210. Classification of witnesses.

- (1) For the purpose of these Rules, witnesses shall be divided into two classes, official and non-official.
- (2) Official witnesses, i.e., public servants to whom the State Service Rules are applicable, summoned to give evidence in their official capacity shall be entitled to travelling allowance at the rates prescribed by the Service Rules applicable to them for their journey to and from Court and for the day spent by them in attendance at the Court to give evidence in cases coming under Rule 206 or 207. The Court however shall not make any payment to an official witness in such cases but shall grant him a certificate that he appeared for giving evidence in his official capacity. Such certificate shall also state the

date on which the witness appeared and the duration of the period for which he has detained, so as to enable him to draw travelling allowance and batta under the Service Rules.

- (3) In cases in which a public servant has to give evidence before a Court which situate not more than 8 Kilometres from his place of official work, the Court may, if it considers necessary, pay him the actual travelling expenses incurred.
- (4) When a public servant appears in his official capacity as a witness in a case which does not fall under Rule 206 or 207 as in a case in which sub-section (3) of Section 254 or subsection (2) of Section 243 of the Code is applied, the party at whose instance he is summoned, shall pre-pay into Court the travelling and halting allowance admissible to him under the Service Rules applicable to him. The amount so pre-paid shall be credited to Government but the Court shall give the witness a certificate containing the particulars, specified in sub-rule (2) so as to enable him to draw the travelling and halting allowance admissible under the Service Rules.
- (5) When a public servant appears to give evidence in any case as a private person, travelling allowance and batta may be paid to him in the ordinary manner, but the Court shall send an advice of all such payments made to him to the head of the office in which he is employed. In this advice, the amount paid as batta and the period during which the attendance of the witness in Court was necessary, shall be stated.
- (6) When a public servant whose emoluments are governed by the Indian Army Regulations, appears in any case coming under Rule 206 or 207 to give evidence in his official capacity he shall be paid the travelling allowance and batta admissible under those Regulations and shall be furnished with a certificate showing in detail the amount paid.
- (7) When Engineers, Medical and Health Officers whose services are lent by the Government to local bodies, attend Court to give evidence in their official capacity and not either in their private capacity, or in a prosecution instituted by the local body, they shall be paid travelling allowance and batta from the State funds at the same rates as would be admissible to Government servants of similar grades under the rules applicable to them.
- (8) Medical subordinates in the employ of local bodies including Government servants lent to and paid by local bodies and Municipalities, when attending Court to give evidence in their official capacity, shall be paid the same rate of allowance as would be admissible to Government servants of similar grades under the Service Rules applicable to them.

Explanation.-For the purpose of this sub-rule the expression 'medical subordinates' include compounders, midwives, nurses etc.

- (9) Honorary Medical Officers when attending Court to give evidence in their official capacity shall be paid allowances at the rates admissible to Government servants of similar grades under the Service Rules applicable to them.

Rule - 211. Class of non-official witnesses.

For purposes of this Chapter, non-official witnesses shall be classified as belonging to either of the classes specified in Rule 212. The Court before which they are required to appear shall fix the class with due regard to the station in life of each individual.

Rule - 212. Rates of payment.

The following are the maximum rates of allowances which may be sanctioned to the different classes of witnesses and subject to the other rules in this chapter, no expenses in excess of or other than those prescribed herein shall be allowed.

TRAVELLING ALLOWANCE

Class of witness	By rail	By public motor service	By Road	By sea or canal	Allowance for subsistence and other expenses not exceeding per diem.
I Class	First Class fare	Actual fare paid	[11] [95 Paise per k.m.]	Actual expenses of passage	Rs. P. 12.00
II Class	Second Class fare or when there is no second Class the next higher class fare	Actual fare paid	35 Paise per k.m.	Actual expenses of passage	7.00

[12] [Provided that the rates of batta payable to non-official witnesses in criminal cases shall not be less than the rate of batta allowable to Class III Employees under the Government]

Rule - 213. Expert witnesses.

- (1) Fees for the services and expenses of expert witnesses from the Finger Print Bureau shall be credited to the State Government, except the travelling allowance which shall be paid to the experts.
- (2) In cases where the opinion of the Finger Print Expert is disputed, a second opinion may be obtained from an expert attached to another Finger Print Bureau.
- (3) The teachers of the deaf and dumb schools shall be treated as expert witnesses in the matter of interpreting the deaf and dumb in Court. They shall be paid the same rates of fees as are payable to other experts.

- (4) Expert or scientific witnesses shall be paid such fee not less than Rs. 10 and not more than Rs. 100 as the Court may fix, for preparing to give evidence, and such fees not less than Rs. 10 and not more than Rs. 30 per diem, as the Court may fix, for attending the trial or hearing. These witnesses shall also be entitled to the allowances prescribed for the ordinary witnesses of their class.

Rule - 214. Rail or other public transport service rate alone to be allowed.

Wherever it is practicable for witnesses to travel by rail or other public transport service, they shall be allowed not more than the rates prescribed for those modes of conveyances.

Rule - 215. Subsistence allowance.

Subsistence allowance may be paid for the days spent for travelling to Court and for the return journey. The subsistence allowance will cease as soon after the conclusion of the enquiry or trial, as the means of quitting the place becomes available.

Rule - 216. Disallowance of expenses of witnesses.

It shall be competent for the Court, before which a complainant or witness (whether for the prosecution or defence) appears, to disallow payment of any expenses by the State, if for any cause to be recorded, the Court thinks fit to do so.

Rule - 217. Travelling allowance to be paid by Government on production of certificate of attendance in Court.

- (1) In a criminal case to which the State is a party, a Government servant giving evidence regarding the facts of which he has official knowledge shall, on production of a certificate of attendance issued by the summoning Court, be paid travelling allowance by the Government under whom he is serving.
- (2) In a criminal case to which the State is not a party, a Government servant giving evidence regarding facts of which he has official knowledge shall, on production of a certificate duly signed by the Controlling Officer showing the rates of travelling and daily allowances admissible to him for a journey on tour, be paid by the summoning Court the travelling and daily allowances admissible to him according to the rates shown in the certificate.

Rule - 218. Scrutiny of bills.

All bills for travelling allowance and batta to complainants and witnesses attending the Courts of Magistrates of the first and the second class shall, after payment has been made by such Courts, be scrutinised by the Chief Judicial Magistrate within whose jurisdiction such Courts are situated, before the charges included in them are finally passed to the Accounts Department for adjustment.

Rule - 219. No travelling allowance when complaint is dismissed under Section 250 of the Code.

In a case where a Magistrate decides to proceed under Section 250 of the Code, no travelling allowance or batta shall be paid to the complainant.

Rule - 220. Carriage expenses.

The Court may, in the case of witnesses who, by reason of sickness, old age or other physical disability, are unable to travel by public conveyance, pay the expense actually incurred by them on private conveyance, but not exceeding 85 paise per kilometre.

Rule - 221. Batta to acquitted prisoners.

For the purpose of enabling the prisoners to return to their places of residences, the Court may pay batta and travelling expenses at the rates prescribed for witnesses to the persons:-

- (i) who are acquitted or discharged and released from custody or who having been arrested under Section 390 of the Code are subsequently released; and
- (ii) who are released under Section 360 of the Code or under the Probation of Offenders Act, 1958 (Central Act 20 of 1958):

Provided no batta and travelling allowances shall be paid to any person who resides within five kilometres from the place at which he is released from custody or who is possessed of sufficient means to make his return journey.

CHAPTER XXV CERTIFIED COPIES**Rule - 222. Application for copies.**

Every application for a copy of a proceeding or document filed in or in the custody of a Court shall be presented by the applicant or his pleader and shall set out the name of the applicant, his position, if any, in the proceedings, the name of his pleader, if any, and a description of the proceeding or document of which a copy is required.

Rule - 223. Return of defective applications.

Any application not complying with the requirements of these rules shall be returned for being represented after rectifying the defects within a period not exceeding seven days.

Rule - 224. Urgent application for copies.

Application for urgent copies shall be by a separate urgent application setting forth the grounds of urgency.

Rule - 225. Copies of non-judicial and confidential papers.

Copies of correspondence or of proceedings which are confidential or are not strictly judicial shall not be granted, except under the orders of the Court.

Rule - 226. Application for copies by strangers.

Except in the case of judgments, applications for the grant of copies of any proceedings or documents by a stranger to the proceeding shall be allowed only by order of the Court obtained on a petition duly verified setting forth the purpose for which the copy is required.

Rule - 227. Application for more than one document.

A single application may pray for copies of more than one document or proceeding in the same case.

Rule - 228. Striking off of defective applications.

When applications are returned for rectification of defects, a limit of seven days shall be fixed for their representation. Defective applications which are not taken back by the parties or not re-presented within the period specified above shall be struck off by the Chief Ministerial Officer.

Rule - 229. Notes of evidence when to be given.

Where the notes of the Presiding Officer form the only record of the evidence, copies of such notes may be given.

Rule - 230. Procedure when documents for which copies are applied for are in another Court.

If the records of a case or the documents of which a copy is applied for have been sent to another Court, the application for the copy may, at the option of the applicant, be forwarded to the said Court for compliance or be returned for presentation to the said Court.

Rule - 231. Copies to Government Officers.

(1) The gazetted officers of all departments and all officers, who, not being gazetted, are entitled to inspect records under Chapter xxvi of these rules may obtain certified copies of the same. Except as regards officers of the Police Department and Public Prosecutors, such right extends only to obtaining certified copies of records relating to the officer's own department.

(2) The Judge or Magistrate, may in his discretion grant or refuse the application. If the application is refused, the Judge or Magistrate shall record the reasons for his refusal and shall communicate a copy thereof to the officer concerned.

(3) The department applying for copies shall furnish copy stamp papers for the purpose:

Provided that the cost of making copies of judgments convicting or acquitting Government servants of criminal offences or of orders discharging such servants, which are supplied on the application of the Heads of Departments concerned, shall be debited to the contingent charges of the Courts supplying the copies:

Provided further that the Jail Department shall be supplied with copies of judgments and orders on plain paper.

Explanation I. The expression 'Heads of Departments' occurring in the first proviso shall include the Heads of Departments of the Central Government.

Explanation II. The Postmaster General, Kerala, shall be deemed to be the Head of a Department for the purpose of the first proviso.

Rule - 232. Order in which applications should be complied with.

The preparation of copies shall be in accordance with the serial order of application except in cases

where an urgent application under Rule 224 has been filed and allowed.

Rule - 233. Calling for stamp papers.

Every day between 3.00 p.m. and 5.00 p.m., a list showing the applications in which records have been received and the number of stamp papers required shall be affixed to the notice board of the copying section. Such list shall remain thereon for three days and, if the last day is a holiday, till the next working day. Within that time, the applicant shall supply stamp-papers called for, failing which the application shall be struck off.

Rule - 234. Additional stamp papers.

Whenever additional stamp papers are found necessary, they shall be called for and supplied in the same manner as in the preceding rule:

Provided that, when the additional stamp papers called for have not been deposited, but the stamp papers originally deposited are sufficient for the preparation of complete copies of one or more documents, the copy application shall be complied with by delivery of such of the completed copies as can be prepared on the stamp papers supplied, the decision of the Head Clerk as to the documents to be selected being final. The copy application shall be rejected only as to the rest.

Rule - 235. [Copying charges.

(1) Copying charges shall be called for and supplied in the form of adhesive court fee stamps affixed to transparent foolscap paper of durable quality, at the rate of one rupee for every 175 words or fraction thereof in Malayalam, Tamil or Kannada.

Provided that charges shall be called and supplied at the rate of Rs. 1.50 per page for photostat copy, in the form of adhesive court fee stamps.

Provided further that affixed stamps shall be cancelled by punching out the insignia at the time of certifying the copy.]^[13]

(2) Five numeral figures shall be taken as equivalent to one word. Words in Malayalam, Tamil or Kannada with short suffixes and inductions shall be counted as a single word for the purposes of this rule.

(3) In granting copies of records, each statement, account, report, petition, order and the like shall be treated as a separate document and shall be written on separate stamp papers.

Rule - 236. Production of stamp papers.

The person producing the stamp papers for copies shall make an endorsement on the copy application showing the number of stamp papers produced and the Head Clerk or such other officer as the Court may direct shall initial and date the same in token of receipt.

Rule - 237. Transcription of copies.

(1) Copies must be transcribed on that side of the paper which bears the stamp and a margin of 2.5 cms. should be left on the left hand side. The pages of the copy shall be consecutively numbered and

each page must be initialled at the foot by the Copyist and the Head Clerk and the last page signed by the Head Clerk, Reader and Copyist. There shall be no erasures. When a correction has been made in the copy, the incorrect word shall be struck through a line in ink across the word and the correct word written as an interlineation in the copy and shall also state at the foot of each page the number of alterations and interlineations made therein. The pages in the original shall be indicated in the copy also before the matter is transcribed and, where there is no pagination, the number of the sheet copies must be indicated.

(2) The transcribed copies shall be compared by the Head Clerk or by such officer as the Court shall direct, or by a Copyist but in no case shall a copy be read to the Head Clerk or other officer or the examination in any way assisted in by the Copyist who prepared the copy.

(3) In the case of a copy for which the production of non-judicial stamp papers of a particular denomination is required, the said stamp paper or papers supplied for the purpose shall be used for copying and shall be written on, in the same manner as copy stamp papers, copy stamp papers being furnished to make up any deficiency. Adhesive court fee label of the value of ^[14][one Rupee] shall be affixed to each such non-judicial stamp paper.

Rule - 238. Copies of maps, plans etc.

When copies applied for are of maps, plans, genealogical trees and tabular matters which cannot be copied on ordinary stamp paper, they shall be prepared on plain paper and skilled labour may be employed for that purpose, if necessary. A reasonable fee shall in each case be fixed by the Court and deposited in cash by the party concerned. Three-fourths of such amount shall be paid to the person employed in preparing the copy and the remaining shall be credited to the Government.

Rule - 239. Sealing and Certificate.

All copies furnished by Court shall be certified to be true copies by the Head Clerk or officer appointed for the purpose and shall be sealed with the seal of the Court as required by Section 76 of the Indian Evidence Act, 1872 (Central Act 1 of 1872).

Rule - 240. Endorsement on copies.

Every copy shall bear an endorsement initialled by the Head Clerk or other officer appointed for the purpose showing the following particulars, namely:-

- (1) Name of the Court;
- (2) Year and number of the case or other proceeding;
- (3) Name of the applicant;
- (4) The number and date of application;
- (5) Date of calling for stamp papers;
- (6) Date of production of stamp papers;
- (7) Date of calling for additional stamp papers;

- (8) Date of production of additional stamp papers;
- (9) Date when copy made ready;
- (10) Date notified for appearance to receive the copy; and
- (11) Date of delivery of copy.

Rule - 241. Intimation of date for delivery of copy.

The Head Clerk shall fix a date for the appearance of the applicant to receive the copy and notify the same on the notice board of the Court or his section. If the copy is not ready for delivery on the date so fixed, the Head Clerk shall fix another day therefor and notify the same in a like manner on or before the date originally fixed for the delivery of the copy.

Rule - 242. Delivery of copies.

A list of copies ready for delivery shall be pasted on the notice board and shall remain thereon for three days and if the last day is a holiday till the next working day.

Rule - 243. Destruction of copies not taken delivery.

If the copies are not taken delivery of within 12 months of the date fixed for delivery, they shall be destroyed, unused sheets in such cases being forwarded to the officer-in-charge of the nearest treasury.

Rule - 244. Incomplete copies to be destroyed.

Incomplete copies shall be destroyed after 12 months from the date on which the application is struck off. But the incomplete copy may be completed, if the necessary additional stamp papers are produced and, if an order of the Court is obtained for such completion on a petition presented within six months from the date on which the application was struck off.

CHAPTER XXVI INSPECTION OF RECORDS OF COURT

Rule - 245. Inspection by Police or Public Prosecutor.

Whenever it shall appear to any Police Officer not below the rank of a Sub-Inspector of Police, that an inspection of the records of any criminal trial or appeal will facilitate the detection or prevention of crime or is desired for the examination of the conduct of the Police Officers connected with the case and whenever inspection of such records may be desired by a Public Prosecutor in exercise of his duty as Public Prosecutor, such officer or Public Prosecutor, as the case may be, may apply to the Sessions Judge or the Presiding Magistrate of the Court in which the records are lodged for permission to inspect the same.

Rule - 246. Procedure on application.

The application referred to in the preceding rule shall be made in writing and shall contain a description of the records and shall state the purpose for which the inspection is sought. The Sessions Judge or Magistrate may in his discretion grant or refuse the application. If the application is refused, the Sessions Judge or Magistrate shall record the reasons for such refusal and shall communicate a copy thereof to the Police Officer concerned or to the Public Prosecutor, as the case may be. If the

application is granted, the Sessions Judge or Magistrate shall make arrangements for permitting the inspection to be conducted in accordance with the succeeding Rule.

Rule - 247. Conduct of inspection.

Every inspection of records under these Rules shall be conducted by a Police Officer not below the rank of a Sub-Inspector of Police or, if the inspection is granted on the application of a Public Prosecutor, then by the Public Prosecutor himself, and it shall take place within the precincts of the Court in which the records are lodged and in the presence of an officer of the Court who shall be deputed by the Sessions Judge or Magistrate for the purpose and no record or part of a record shall be removed by the inspecting officer from the precincts of the Court.

Rule - 248. Copies of relevant records to be supplied to the Public Prosecutor.

Copies of relevant records in any criminal proceedings shall be supplied to the Public Prosecutor on his application either on copy stamp papers to be supplied by or on plain paper at the discretion of the Judge or Magistrate.

Rule - 249. Inspection by Officers of other departments.

Subject to the conditions contained in Rules 245 to 247, the following officers shall also be eligible to inspect the records in a criminal proceeding:-

- (1) Officers of the Excise and Customs Department in charge of a circle, Assistant Inspectors and Inspectors of Excise, Sales Tax and Agricultural Income Tax Officers and Gazetted Officers of the Forest Department, so far as such records relate to their respective departments.
- (2) Officers of the Income Tax Department including Special Investigation Branch attached to it, not below the rank of Income Tax Inspectors, duly authorised by Income Tax Officers in respect of records other than police diaries and reports and any confidential portion of such records; and
- (3) Officers of the Revenue Departments of and above the rank of a Deputy Tahsildar.

Rule - 250. Taking of extracts.

An officer inspecting records under these rules may take extracts therefrom if he considers it necessary to do so.

CHAPTER XXVII PRODUCTION, RETURN AND SUBMISSION OF RECORDS

Rule - 251. Court to consider whether a certified copy of the record is sufficient.

Before issuing a summons for the production of a document in the custody of another Court, the Court shall consider whether the interested party should not be required to obtain and file a certified copy thereof. The original shall ordinarily be summoned only if the Court is satisfied that it would entail unreasonable expense or delay to obtain a certified copy or that production of the original is necessary for the purposes of justice.

Rule - 252. Summoning document from Parliament or Legislature.

- (1) Summons for the production of a document in the custody of the House of Parliament or of a

Legislature of a State shall be by letter of request as in Judicial Form No. 29.

(2) No Court shall require production of the original document unless it considers that such production is necessary in the interests of justice. Except where the Court considers that the production of the original document is necessary, the latter shall state that a certified copy may be produced instead of the original.

Rule - 253. List to accompany documents.

Where any document is filed before any Court by the prosecution or the accused, the particulars of every such document shall be included in a list in Judicial Form No. 15.

Rule - 254. A list of records to be retained by the Court to be given.

Where records or documents produced from any Court or public office are retained by a Criminal Court requiring their production, a receipt containing a descriptive list thereof shall be given to the officer producing them and a duplicate of the receipt shall be placed with the records or documents. Any apparent erasure or alteration in any paper shall be noted in the said list.

Rule - 255. Packet to be opened in the presence of the Judge or Magistrate.

When any records or official documents are received from any Court or public office by post, the packet shall be opened in the presence of the Presiding Judge or Magistrate and the papers compared with the list accompanying them. The instructions contained in Rules 256 and 257 shall then be observed, as far as possible.

Rule - 256. Records to be kept in packet sealed and labelled.

The public records or documents shall, as long as they remain in the custody of the Court, which required their production, be kept in a sealed packet properly labelled and the packet shall not be opened except in the presence of the Presiding Judge or Magistrate.

Return of records

Rule - 257. Return of records when no longer required.

Public documents received from any Court or public office or from the House of Parliament or State Legislature, when no longer required, shall be returned to such Court or office or the House of Parliament or State Legislature with a descriptive list in a sealed packet.

Rule - 258. Application for return of documents.

(1) Applications from parties or other persons for the return of documents filed by them in Court shall be made to the Court in which the documents were originally filed. If the application is made for any document which has been transmitted to another Court, the Court in which the document was originally filed shall itself apply for the transmission of the document and on receipt thereof shall return the same to the applicant:

Provided that no document shall be returned, unless the Judge or Magistrate is satisfied that it will not be required for reference in proceeding either before his own Court or the Court of appeal or revision.

(2) If the applicants or their authorised agents do not take delivery of the documents within one month from the date of the order allowing return of documents, the application may be struck off.

Submission of records

Rule - 259. Submission of records to Court of appeal or revision.

Every Court shall submit promptly the records called for by the Court of appeal or revision.

Rule - 260. Certified copies to be obtained before transmission of records.

Except in cases where the records are required to be sent up urgently or by a particular date, the Court shall, on receipt of notice of institution of appeal or revision, call upon the counsel appearing in the case to apply for certified copies of the records, if any, required by him within five days and supply the copies without delay. The records shall not, however, be retained in the Court for more than one month from the date of receipt of notice.

Rule - 261. What records to be submitted.

(1) In references and in every other case when records are called for by the High Court, the entire original Sessions and Magisterial records shall be submitted.

(2) A separate covering letter shall accompany such records and the delay, if any, in submitting the records shall be explained in the covering letter.

(3) Eight spare copies of judgments in cases referred to in sub-section (1) of Section 366 of the Code and six copies in other Sessions trials shall be sent with the record.

(4) The Court shall, when sending up the records to the High Court for the purpose of referred trial or criminal appeal, where a sentence of death or imprisonment for life has been awarded or where the accused has been acquitted of a charge under Section 302 Indian Penal Code, forward, apart from the original records, an extra copy of the First Information Report, committal order, charge against the accused, statement of the accused, deposition of the witnesses and exhibits.

(5) If in such cases the handwriting of an original is undecipherable, one extra copy of the original shall be forwarded. The extra copy may be prepared simultaneously with the first copy by writing the same with ballpoint pen and by taking a carbon copy thereof. The copies may be prepared on both sides of the paper, provided they will be readable.

(6) The docket on the fly-leaf of all records and the covering letter shall specify the number of the case on the lower Court's file and the number of appeal or revision case or petition on the file of the High Court.

(7) Every record shall, before despatch to the High Court, be examined and certified as complete in accordance with the foregoing rules by the Head Ministerial Officer of the Court forwarding it. Police diaries, if any, transmitted with the records shall be kept in a sealed cover.

Rule - 262. Copies of depositions and other documents to be submitted.

The Court shall, when submitting original records, under Section 366 of the Code or for appeal, revision or reference submit readable copies of depositions, statements of the accused and other documents

when the originals are not easily decipherable.

Rule - 263. Material objects.

(1) When a reference is made to, or notice of an appeal or revision is received from, the High Court, the Sessions Judge or Magistrate shall determine whether any or which of the material objects marked as exhibits in the case shall be sent to the High Court and, in exercising his discretion, he shall consider whether the object can be conveniently transmitted or whether an inspection thereof will assist the High Court:

Provided that the weapon, substance or article whereby the offence is said to have been committed and all garments stained with blood shall be sent, unless the High Court otherwise directs.

(2) Courts of Session shall enclose with the records in Sessions Cases submitted to the High Court a list of material objects.

Rule - 264. Note to be made if any material object is retained.

In every case in which any material object is retained, the order of the Judge directing such retention shall form part of the record submitted to the High Court.

Rule - 265. Return to be obtained within one month.

Articles received from lower Courts such as sticks, stones, knives, bill-books, axes, guns, rags of clothing, earth etc., and all articles of trifling value shall ordinarily be retained in the High Court and destroyed there. Any application for the return of these articles (for return to parties or reference to any other case) or of any article that the High Court has omitted to return, shall be made within one month from the date on which the records of the case are received back in the lower Court:

Provided that such articles as may be required for the police training college or museum attached thereto shall be returned to the Superintendent of Police of the districts concerned at their request after the appeal time has expired.

Rule - 266. When material objects are to be destroyed.

Material objects, exhibited at the trial of a criminal case shall be retained by the Court, until the Court is satisfied that the appeal time has expired and that no appeal has been preferred or that any appeal presented has been disposed of. Thereafter they may be destroyed or otherwise disposed of according to law.

Rule - 267. Dirty clothes normally to be burnt.

Dirty clothes, unless claimed within three days after the appeal records are received back in the lower Court shall be burnt:

Provided that the Judge may for reasons to be recorded in writing order them to be burnt at once, after receipt of records after appeal, by his Court.

Rule - 268. Weapons used in the commission of crimes to be broken up and sold or destroyed.

Weapons with which crimes have been committed shall after the final disposal of the case be broken

up and sold, or, if the Judge so directs, be destroyed.

Rule - 269. Perishable property to be sold immediately after disposal of the case.

All unclaimed property of a perishable nature shall be sold immediately after disposal of the case and the sale proceeds held in deposit for three months.

Rule - 270. Sale of unclaimed property other than perishable property.

All unclaimed property not falling under the preceding rule, shall, subject to the other rules in this Chapter, be sold by the Court in whose custody it is held, after fifteen days' notice duly published in the Court house.

Rule - 271. Sale proceeds.

Sale proceeds of articles sold under Rules 269 and 270 shall be credited to Government after three months' notice published in the Notice Board of the Court.

Rule - 272. Weapons when to be sent to Professor of Forensic Medicine or Principal of the Police Training School.

Where a material object is a confiscated weapon other than a fire arm or ammunition and is, in the opinion of the Sessions Judge, of a most unusual character or of special interest in the light of the facts of the case, it shall be ascertained by reference to the Professor of Forensic Medicine of a Medical College or the Principal of the Police Training School, whether it is required for the museum in the college or school. The weapon shall be destroyed only if it is not so required. If it is so required, it shall be sent either to the Professor of Forensic Medicine or the Principal of the Police Training School. When there is a demand from both of them, the Professor of Forensic Medicine shall have priority over the Principal of Police Training school.

CHAPTER XXVIII SCALE OF PROCESS FEES

Rule - 273. Process fees.

Process fee shall be leviable at the rates prescribed from time to time under the Kerala Court Fees and Suits Valuation Act, 1959 (10 of 1960).

Rule - 274. Batta memo.

Parties applying for the issue of process shall file a batta memo containing the name, residence and full address etc., of the persons on whom the process is to be served together with the fees for such service and the batta, if any, prescribed.

CHAPTER XXIX MISCELLANEOUS

Rule - 275. Intimation of conviction of military pensioners to be given to the Controller of Defence Accounts, Pensions.

(1) When a person in receipt of pension for service in the defence forces is convicted and sentenced to imprisonment or where such conviction and sentence of imprisonment are confirmed in appeal, the Court passing or confirming such a sentence shall forward to the Controller of Defence Accounts,

Pensions, free of charge, a copy of such judgement as soon as possible after it is pronounced, stating wherever possible the place from where the pensioner drew his last pension.

(2) Magistrates other than the Chief Judicial Magistrates shall forward such judgments through the Chief Judicial Magistrate.

(3) Additional and Assistant Sessions Judges shall forward such judgments through the Sessions Judge.

CHAPTER XXX

Rule - 276. Registers to be maintained.

The Court shall maintain the registers mentioned in Appendix II.

[1] Published in Kerala Gazette No. 33 dt. 14/08/1984.

[2] Date of commencement 01/11/1984 as per Notification No. DI-27547/80 dt. 10/10/1984. [In exercise of the powers conferred by Rule 1(2) of the Criminal Rules of Practice, Kerala, 1982, published in K.G. No. 33 dt. 14/08/1984, Part III, the High Court of Kerala hereby appoints 01/11/1984 as the date on which the said Rules shall come into force.]

[3] Inserted by Notn. DI-34351/81 dt. 08/06/1988, published in Kerala Gazette No. 33 dt. 16/08/1988.

[4] Substituted by Notification No. DI-28111/2005/(2) dt. 27/04/2013, published in Kerala Gazette No. 22 dt. 28/05/2013. Prior to the substitution it read as:

"31. Pleader to file memo of appearance.-Every Pleader as defined in clause (9) of Section 2 of the Code, other than a public prosecutor, appearing either on behalf of the complainant or the accused shall file a memorandum of appearance containing a declaration that he has been duly instructed by, or on behalf of the party whom he claims to represent.

Explanation.-For the removal of doubts it is hereby clarified that Public Prosecutors and Assistant Public Prosecutors when they appear in Abkari cases and other complaints filed by any public servant under any law for the time being in force, need file only a memorandum of appearance containing a declaration that he has been duly instructed to appear in the case by such public servant or complainant, as the case may be."

[5] Renumbered by notification No. D1-24249//2010 dt. 17/09/2010 in K.G. No. 18 dt. 09/10/2012.

[6] Inserted by notification No. D1-24249//2010 dt. 17/09/2010 in K.G. No. 18 dt. 09/10/2012.

[7] Rules 81, 82 & 84 are omitted by notification No. D1-3395/80 dt. 13/10/1992. Prior to omission the Rules were read as "81. Panel of defence counsel to be prepared.- (1) Every year before the end of November, the Sessions Judge shall invite applications from members of the Bar for being appointed as defence counsel in cases coming for trial in the Courts of Sessions in his division and a panel of Advocates shall be prepared from the several applicants in consultation with the Presidents of the concerned Bar Associations. Selection shall be made on the basis of merit and ability, before the end of December. The panel so prepared shall remain in force for the whole of the next year. Where the court has to engage a defence counsel under sub-section (1) of Section 304 of the Code the court shall appoint a pleader from the panel.

(2) An Advocate included in the panel for one year, shall be eligible for inclusion in the panel for the succeeding years."

"82. Appointment of Defence Pleaders.-

(1) The defence pleader shall be appointed by the Sessions Judge, the Additional Sessions Judge or the Assistant Sessions Judge who is to hold the trial. The selection shall be made from the panel prepared for that year, observing the rule of rotation as far as possible.

(2) In cases where there are more accused than one, only one pleader shall be appointed for all the accused, unless on account of conflict of interest between the accused inter se, the court finds it necessary in the interests of a fair trial to appoint a separate pleader for any one or more of the accused." "84. Fees payable to the defence counsel.- The fees payable to the pleader engaged to defend an

accused under sub-section (I) of Section 304 of the Code shall be Rs. 50 per each day of effective appearance subject to a maximum of Rs. 500:

Provided that the court may, in appropriate cases, sanction payment of fees in excess of Rs. 500 after obtaining the previous sanction of the High Court."

[8] Rules 81, 82 & 84 are omitted by notification No. D1-3395/80 dt. 13/10/1992. Prior to omission the Rules were read as "81. Panel of defence counsel to be prepared.- (1) Every year before the end of November, the Sessions Judge shall invite applications from members of the Bar for being appointed as defence counsel in cases coming for trial in the Courts of Sessions in his division and a panel of Advocates shall be prepared from the several applicants in consultation with the Presidents of the concerned Bar Associations. Selection shall be made on the basis of merit and ability, before the end of December. The panel so prepared shall remain in force for the whole of the next year. Where the court has to engage a defence counsel under sub-section (1) of Section 304 of the Code the court shall appoint a pleader from the panel.

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Provided that the court may, in appropriate cases, sanction payment of fees in excess of Rs. 500 after obtaining the previous sanction of the High Court."

[10] Sub-rule (vii) omitted by Notification No. D1(A)-37711/97 dt. 01/08/2000. Prior to the sub-rule read as under "(vii) Cases relating to offences under the Forest Act."

[11] Substituted for "55 Paise per k.m." by Notification No. D1-13844/81 dt. 24/03/1986.

[12] Proviso added by Notification No. D1-13844/81 dt 24/03/1986.

[13] The Rule 235 substituted by Notn. No.D1-37711/97 dt. 01/08/2000. Prior to the rule read as under:

"235. Copying charges.(1) Copying charges shall be called for and supplied in the shape of copy stamp papers calculated at the rate of one stamp paper of [One Rupee] for every 175 words in English or 125 words in Malayalam, Tamil or Kannada or fractions thereof:

Provided that, instead of furnishing copy stamp papers, a party may furnish transparent foolscap paper of durable quality with the requisite court fee stamps affixed on each sheet and the rules applicable to the preparation of copies on stamp papers shall apply:

[Provided further that in the case of photostat copies/copyig charges shall be called for and supplied in the shape of adhesive court-fee stamps at the rate of one rupee and fifty paise per page:

Provided also that affixed stamps shall be cancelled by punching out the insignia at the time of certifying the copy.]

[14] The words "One Rupee" substituted for "25 Paise" by Notn. No. DI-53915/85 dt. 04/02/1988, published in Kerala Gazette Extra No. 96 dt. 05/02/1988.

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2. Provisos added by ibid.